

File number: DOS-2022-02106

Subject: the use of sound sensors in an innovation project regarding noise pollution in the student district in Antwerp.

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, chair, and Messrs. Dirk Van Der Kelen and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the Act of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG";¹

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

1 The GBA reminds that the Act of December 25, 2023, amending the Act of December 3, 2017, establishing the Data Protection Authority (WOG), and the new internal rules of procedure of the GBA, came into force on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures for the Dispute Chamber that commence from this date. The new WOG is available via this link: <https://www.ejustice.just.fgov.be/cgi/loi/change>

[lg.pl?language=nl&la=N&cn=2017120311&table;name=wet](https://www.ejustice.just.fgov.be/cgi/loi/change?language=nl&la=N&cn=2017120311&table;name=wet), and the internal rules of procedure via this link: . Files initiated before June 1, 2024, of which this file is a part, are subject to the provisions of the WOG and the internal rules of procedure as they existed before this date.

Substantive Decision 29/2025 — 2/60

Has made the following decision regarding:

The complainant:

X, represented by Mr. Magali Feys, hereinafter "the complainant";

The respondent:

City of Antwerp, with registered office at Grote Markt 1 – 2000 Antwerp, with company number 0207.500.123, represented by Mr. Wouter Rubens, hereinafter "the respondent";

The first interested party:

Y bv, represented by Mr. Joost Peeters, hereinafter "the processor";

The second interested party:

Flemish Agency for Innovation and Enterprise (VLAIO), with registered office at Koning Albert II laan 35 bus 12 – 1030 Schaarbeek, with company number 0316.380.841, hereinafter "the second interested party".

Substantive Decision 29/2025 — 3/60

I. Facts and Procedure

1.

The subject of the complaint concerns the use of sound sensors in an innovation project regarding noise pollution in the student district in Antwerp.²

2.

After an attempt at mediation via the First Line Service, the complainant submitted a complaint to the Data Protection Authority (hereinafter 'GBA') against the respondent on June 25, 2022.

3.

On June 27, 2022, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 WOG and was forwarded to the Dispute Chamber based on Article 62, § 1 WOG.

4.

On July 19, 2022, in accordance with Article 96, § 1 WOG, the request from the Dispute Chamber for

an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.

5.

On February 13, 2024, the investigation by the Inspection Service was completed, the report was added to the file, and the file was forwarded by the Inspector General to the Chair of the Dispute Chamber (Article 91, § 1 and § 2 WOG).

The report contains eighteen findings regarding the subject of the complaint:

1) The data controller for the innovation project "noise in the student district" is the City of Antwerp.
2) Since all material conditions for application of Article 314bis, §1 of the Penal Code ("Sw.")³ are fulfilled, the city could not proceed with the processing without the consent of the data subjects. The moral element of the offense will not be addressed in this report, as the assessment of this falls within the jurisdiction of the criminal courts. It should be noted that the city, based on the facts established above, was certainly not unaware of the possibility that confidential communication via the devices set up at its request could be recorded, intercepted, or accessed. It is significant in this respect that [processor] already referred during the tendering procedure to the unintentional nature of a potential violation of the eavesdropping prohibition under Article 314bis Sw. In any case, the city could not, given the consent requirement set by Article 314bis Sw., simply

2 A more detailed description of the processing is included under point 'II.1 Description of the processing'.

3 Article 314bis, §1 Sw: "He who, intentionally, with the aid of any device not intended for public communication, to which he is not a participant, intercepts or causes to be intercepted, takes knowledge of or causes to take knowledge of, records or causes to be recorded, without the consent of all participants in that communication, shall be punished with imprisonment of six months to two years and with a fine of two hundred to ten thousand euros or with one of those penalties alone; or, with the intent to commit one of the above-described offenses, sets up or causes to be set up any device."

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based on its general authority under Article 135, §2 of the Municipal Act as a legal basis. Moreover, the city should have been particularly vigilant in the application and compliance with Article 314bis of the Penal Code, since the processing falls within the police powers assigned to it by this article. The police themselves can only deviate from the prohibition on eavesdropping by order of the investigating judge and in well-defined and exceptional cases, pursuant to Article 90ter of the Code of Criminal Procedure.

3) The processing of raw audio files by the city in the context of the present project could not be validly based on the legal ground from Article 6.1.e GDPR, as the processing inevitably involved the processing of special categories of personal data, and the legal ground invoked by the city does not constitute a valid exception to the general prohibition on the processing of such categories of personal data under Article 9.1 GDPR. The processing of voiceprints in the context of the present project was not prohibited under Article 9.1 GDPR and could therefore possibly be based on the legal ground from Article 6.1.e GDPR, but taking into account the special protection that sensitive data enjoys under Recital 51 GDPR and whether all application conditions of this legal ground are met.

4 Article 135, §2 of the Municipal Act: "Municipalities are also tasked with providing, for the benefit of the residents, a good police service, particularly concerning cleanliness, health, safety, and peace on public roads and places and in public buildings.

Specifically, and insofar as the matter is not outside the authority of the municipalities, the following police matters are entrusted to the vigilance and authority of the municipalities:

[...]

2° preventing breaches of public peace, such as fights and disputes with crowds on the street, disturbances caused in places of public assembly, nighttime noise, and nighttime gatherings that disturb the peace of the residents;

3° maintaining order in places where many people gather, such as at fairs and markets, during public entertainments and ceremonies, performances and games, in drinking establishments, churches, and other public places;

[...]

7° taking necessary measures, including police regulations, to counter all forms of public nuisance.”

5 Article 90ter, §1 of the Code of Criminal Procedure: “The investigating judge may, without prejudice to the application of Articles 39bis, 87, 88, 89bis, and 90, intercept, take note of, search, and record non-public communications or data from a computer system or a part thereof with technical means, with a covert intention.

This measure can only be ordered in exceptional cases, when the investigation requires it, if there are serious indications that it concerns a criminal offense referred to in paragraph 2, and if other means of investigation are insufficient to uncover the truth.

[...]

The measure referred to in this paragraph can only be ordered to locate data that may serve to uncover the truth. It can only be ordered concerning persons who are suspected of having committed the criminal offense based on precise indications, concerning the communication means or computer systems regularly used by a person under suspicion, or concerning the places where this person is suspected to be. The measure can also be ordered concerning persons who are suspected based on precise facts of regularly being in contact with a person under suspicion.”

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4) The processing of raw audio files by the city in the context of the present project could not validly be based on the legal ground from Art. 6.1.e GDPR, but rather – and exclusively – on consent in the sense of Art. 4.11 GDPR. Such consent was neither requested nor obtained by the city, and the city did not consider using consent as a legal ground prior to the present investigation. This constitutes a violation of the principle of legality as per Art. 5.1.a GDPR.

5) The Inspection Service establishes based on the above considerations that the data controller incorrectly judged that the MEL spectrograms used within the project were not personal data within the meaning of Art. 4.1 GDPR. The MEL spectrograms do indeed fall under this definition when calculated based on human voice, and as biometric personal data in the sense of Art. 4.14 GDPR, they enjoy special protection under Recital 51 GDPR.

6) The legal ground invoked by the city for the processing (Art. 135 Municipalities Act) is not a “specific provision regarding data protection in order to adapt the application of the rules of this regulation with a view to fulfilling a legal obligation or in the context of performing a task of general interest or a task in the exercise of public authority” in the sense of Recital 51 GDPR. Therefore, the legal ground could not be invoked for the processing of biometric personal data. Moreover, even if this legal ground were to be considered as such, the Inspection Service finds that the city violated Art. 6.3 GDPR by not verifying whether the purpose of the processing was necessary and proportionate for the fulfillment of the task of general interest or for the exercise of the public authority granted to the city by Art. 135 Municipalities Act. A properly conducted necessity and proportionality assessment, given the specific risks associated with the use of AI for automated recognition of human characteristics in public spaces and the relatively limited public interest in combating noise pollution, should have concluded that the processing of biometric personal data within the current project was not permissible. This constitutes a violation of the principle of legality as per Art. 5.1.a GDPR.

7) The city could not ensure the actual exercise of the right to object of the data subjects, as established in Art. 21 GDPR, in the context of the contentious project, which meant it could not base the processing on Art. 6.1.e GDPR. Only by relying on a norm that met all the conditions of Art. 23 GDPR as a legal ground in accordance with Art. 6.1.c GDPR could the right to object of the data subjects have been validly restricted.

8) The city violated its transparency obligation imposed by Art. 5.1.a GDPR in the context of the contentious project by communicating both incompletely and misleadingly about the processing of personal data within the project. Specifically, this constituted a general violation of Art. 5.1.a GDPR, as well as violations of Art. 13.1.c, Art. 13.1.e, Art. 13.1.f, Art. 13.2.a, and Art. 13.2.b GDPR. Since the communication was not only incomplete but also misleading, the city also violated Art. 12.1 GDPR regarding the required comprehensibility of the communication. Regarding the information boards placed in public spaces, the Inspection Service finally finds that this information channel did not meet the accessibility requirement from Art. 12.1 GDPR. Since this information channel constituted the primary channel for the data subjects whose personal data could be processed in the context of the

contentious project, and the city even believed it could derive implicit consent from the data subjects, a violation of Art. 12.1 GDPR is established.

9) Violation of Art. 25 GDPR read in conjunction with Art. 5.1.a GDPR (legality) because – and this against the advice of the DPO dated 25/2/2022 – no adequate technical and/or organizational measures were taken to prevent recognition of the data subjects or the content of conversations based on the raw audio.

10) Violation of Art. 25 GDPR read in conjunction with Art. 5.1.c GDPR (data minimization) because the city chose to work with audio fragments of 10 seconds and not with shorter fragments of 2 seconds, although this was technically possible and although the city's DPO advised working with the shortest possible audio fragments.

11) Violation of Art. 25 GDPR read in conjunction with Art. 5.1.c GDPR (data minimization) because the city chose to record raw audio locally 24 hours a day, while it was technically possible to limit the local audio recordings to nighttime hours (7 PM to 7 AM).

12) Violation of Art. 25 GDPR read in conjunction with Art. 5.1.a GDPR (legality) because the city chose to carry out the entire project, including the training and testing phases (in which the data protection risks were highest), in public space without having obtained valid consent from the data subjects.

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13) Violation of Article 25 GDPR read together with Article 5.1.a GDPR (lawfulness) because the city did not investigate how it could have been avoided that biometric personal data were processed within the project via MEL spectrograms, for which there was no legal basis.

14) Violation of Article 25 GDPR read together with Article 21.1 GDPR (right to object) because the city did not investigate what technical solutions were possible to allow the data subject to exercise his/her right to object in the context of the contentious project.

15) By failing to request evidence or further documentation from the processor regarding the self-declared guarantees concerning the application of appropriate technical and organizational measures to ensure that the processing complies with the requirements of this regulation and the protection of the rights of the data subject, despite various warning signals regarding the level of knowledge and compliance with the GDPR by the processor, the city has violated its duty of vigilance towards the processor in accordance with Article 28.1 GDPR.

16) Given the nature, scope, context, and purposes of the processing, a data protection impact assessment (hereinafter 'DPIA') should have been conducted in accordance with Articles 35.1, 35.3, and 35.4 GDPR.

17) Although the city formally proceeded to carry out a DPIA, this assessment did not substantively meet the requirements of Article 35.7 GDPR. None of the four minimum elements from this article were correctly included in the DPIA. The processing was therefore only partially and inadequately mapped, the risks insufficiently identified, and a correct assessment of necessity and proportionality hindered. The city evidently regarded the obligation under Article 35 GDPR as a mere formal exercise, as evidenced by the internal meeting report of 25/2/2022 regarding the second offer from the processor in the procurement procedure, in which, among others, the deputy DPO of the city participated. The inadequate seriousness with which the DPIA was conducted is further supported by the fact that the city did not appear to have a method for risk assessment. Without a risk assessment method, an objective assessment of the risks associated with the processing in accordance with Article 35 GDPR, read together with Recital 76 GDPR, is not possible. This was clarified by the GBA (then: CBPL) in Recommendation 01/2018.

18) The processing of personal data within the contentious project did not comply with the requirements of Chapter V GDPR regarding transfers of personal data to third countries or international organizations since no so-called Data Transfer Impact Assessment (DTIA) was conducted and biometric personal data (MEL spectrograms) were processed unencrypted in Google Cloud.

6. The inspection report also pointed to the strategic importance of the violations, four aggravating circumstances (intentional nature of the violation of the lawfulness principle; intentional nature of the violation of the transparency principle; nature, scope, and purpose of the processing; capacity of the

data controller) and two mitigating circumstances (the execution of the formal steps expected of a data controller; the loyal cooperation with the investigation). Finally, the inspection report identified two potential interested third parties: the processor and the subsidizing government.

7. On March 5, 2024, the complainant and the respondent are notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They are also informed under Article 99 WOG of the deadlines to submit their defenses.

The scope of the case is established on the following alleged violations:

- Violation of Article 5.1.a) GDPR, Article 6 GDPR, and Article 9 GDPR because the processing of the raw audio files and the voiceprints was not lawfully processed.
- Violation of Article 21 GDPR because the actual exercise of the right to object is not guaranteed in the event that the processing would be lawfully based on Article 6.1.e) GDPR.
- Violation of Article 5.1.a) GDPR, Article 12.1 GDPR, Article 13.1 GDPR, and Article 13.2 GDPR because the transparency obligation towards the data subjects was incomplete and did not meet the requirements of comprehensibility and accessibility.
- Violation of Article 25, read together with Article 5.1.a) GDPR, Article 5.1.c) GDPR, and Article 21.1 GDPR because no appropriate technical and organizational measures were taken and the necessary safeguards were not incorporated into the processing.
- Violation of Article 28.1 GDPR because the data controller has violated its duty of vigilance towards the processor.
- Violation of Article 35.7 GDPR because the conducted data protection impact assessment did not substantively meet the minimum requirements.
- Violation of Article 44 GDPR because the contentious project did not comply with the general principles regarding transfers to third countries.

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The deadline for receipt of the defendant's statement of defense is set for April 16, 2024, for the claimant's reply on May 7, 2024, and finally for the defendant's rejoinder on May 28, 2024.

8.

On March 6, 2024, the claimant electronically accepts all communications regarding the case, in accordance with Article 98 WOG.

9.

On March 7, 2024, the claimant requests a copy of the file (Article 95, § 2, 3° WOG), which is provided to him on March 18, 2024.

10.

On March 18, 2024, the defendant electronically accepts all communications regarding the case, indicates that she wishes to exercise the right to be heard, in accordance with Article 98 WOG, and requests a copy of the file (Article 95, § 2, 3° WOG), which is provided to her on March 26, 2024.

11.

On April 15, 2024, the Disputes Chamber suspends the deadlines for conclusions due to the possible intervention of interested third parties.

12.

On April 17, 2024, all parties, including the processor and the second interested party, are notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They are also informed under Article 99 WOG of the deadlines for submitting their defenses. The scope of the case is reiterated unchanged.

The deadline for receipt of the defendant's statement of defense is extended and set for April 25, 2024, for the statement of defense of the processor and the second interested party on May 17, 2024, for the claimant's reply on June 17, 2024, and finally for the defendant's rejoinder on July 9, 2024.

13.

On April 17, 2024, the second interested party confirms receipt of the invitation to submit conclusions.

14.

On April 23, 2024, the processor electronically accepts all communications regarding the case and requests a copy of the file (Article 95, § 2, 3° WOG), which is provided to her on April 25, 2024.

15.

On April 25, 2024, the Disputes Chamber receives the statement of defense from the defendant.

16.

On May 17, 2024, the Disputes Chamber receives the statement of defense from the processor. The second interested party does not submit a conclusion.

17.

On June 17, 2024, the Disputes Chamber receives the claimant's reply.

18.

On July 9, 2024, the Disputes Chamber receives the defendant's rejoinder.

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19.

On October 8, 2024, the parties are informed that the hearing will take place on November 6, 2024.

After several communications regarding the rescheduling of the hearing, it is definitively set for November 26, 2024, on October 25, 2024.

20. On November 26, 2024, the parties are heard by the Disputes Chamber. Only the second interested party was not present or represented at this hearing.

21.

On November 28, 2024, the minutes of the hearing are presented to the parties.

22.

On December 2, 2024, the Disputes Chamber receives a message from the defendant stating that she has no comments regarding the minutes. The other parties also do not formulate any comments on the minutes of the hearing.

II. Reasoning

II.1. Description of the Processing

23.

For clarification, the Disputes Chamber summarizes the various processing activities in the context of the innovation project "noise in the student neighborhood" (hereinafter: the 'innovation project') based on the technical documentation and the inspection report.

24.

In the context of the City of Things project of the second interested party, the defendant had requested and received subsidies to set up 30 sound sensors as a pilot project in the student neighborhood. These sensors would record all sounds from April 2022 to December 2022 and activate a type of 'nudging'⁶ in response to human noise disturbances for a period of several weeks in June and October 2022.

25.

The aim of the project is "to map and remediate noise pollution in the student neighborhood of Antwerp using technology."⁷ For this purpose, the data controller engages a processor who, through sound sensors and a server cluster with three sub-processors, will additionally train an existing AI model to classify environmental sounds and activate a nudging setup in the case of certain sound classes. A statistical analysis will evaluate the causes of noise pollution and the effects of the nudging.

26.

The existing AI model of the processor was already able to distinguish the following sound classes: people, birds, bell, engine, alarm, dog, glass, shot, siren, whistle.

6 Nudging is understood as influencing human behavior by giving a nudge in the right direction (definition by Disputes Chamber).

7 Appendix to document 38: 001 – DPIA Noise Pollution Student Neighborhood, p. 4.

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additional training of the AI model was to lead to the following sound classes and subclasses:

-

Motorized transport: moped – motorcycle – car – bus – truck

-

Music: origin indoors - origin outdoors

-

Environmental noise: bang sounds – machine sounds - barking dogs - alarm

-

Voice noise: shouting/fighting – singing - howling/screaming - talking (emphasis by the Disputes Chamber)

-

Vandalism: glass breakage - knocking over bicycles - throwing/kicking trash bags

II.1.1. Storage of raw audio files

27.

Once installed, the sound sensors continuously recorded ambient sound 24/7. These analog signals were converted within the sensor into successive digital signals of ten seconds (hereinafter referred to as 'raw audio files'). These raw audio files were encrypted and stored on the sound sensor for a period of eight hours, including the coordinates of the sensor and the time of recording.

II.1.2. Objective trigger

28.

From this raw audio file, the sound level was immediately calculated and sent to the Google cloud to serve as one of the 'triggers' for the further course of the innovation project. The sound level did not contain any personal data. When the recorded sound exceeded a certain threshold of sound level between 7 PM and 7 AM, thus activating the trigger, the sound sensor generated MEL-spectrograms of audio fragments of 10 seconds of the sound. These MEL-spectrograms are necessary because the classification of the sound is based on them.

II.1.3. Subjective trigger

29.

The innovation project provided an app for local residents to report when noise disturbances occurred in their neighborhood. Based on these 'subjective' reports, a trigger was activated from the Google cloud to send the appropriate ten-second fragments of raw audio files from the sound sensor's memory to the server cluster to enable the training of the AI system.

II.1.4. Determining sound classes: training of the AI system

30.

When an (objective or subjective) trigger was activated, a "recording" command from the Google cloud was sent to the sound sensor, which forwarded the relevant 10 seconds of raw audio files via a server to the processor. Employees of the processor listened to the fragments to label them in the predetermined classes (see paragraph 26). This labeling was forwarded to a third server, where the label was combined with the calculated MEL-spectrogram of the raw audio file. The AI model was trained on this third server using the labeled MEL-spectrograms.

II.1.5. Statistical analysis

31.

Based on the classification of the sounds that had activated a trigger, an analysis was made of the occurrence of noise disturbances in the student neighborhood. This analysis could be consulted via a dashboard.

II.1.6. Automatic nudging

32.

Based on the sound class determined after the activation of an objective trigger, the AI system, located in the server cluster, could activate a nudge in real-time in the immediate vicinity of the sound sensor where the objective trigger was observed. Since this procedure was still under development, only two limited periods were provided during the duration of the innovation project to set up and test a nudge installation. The ultimate goal of the innovation project was, on the one hand, to sufficiently train the AI model to (eventually) attempt to perform the classification of sounds entirely on the sensor itself and, on the other hand, to evaluate based on this classification which nudges would be effective in proactively addressing human nighttime noise.

II.2. Processing of personal data

33.

First, the Disputes Chamber refers to the judgment P.G. and J.H. v. the United Kingdom, which addressed the recording of voices in public spaces. Although this dispute was situated in the criminal law sphere, certain findings of the European

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Court of Human Rights (hereinafter 'ECHR') also relevant to this case. Thus, the ECHR stated regarding monitoring in public spaces¹⁰:

"56. [...] Article 8 also protects a right to identity and personal development, and the right to establish and develop relationships with other human beings and the outside world [...]. There is therefore a zone of interaction of a person with others, even in a public context, which may fall within the scope of 'private life'.

57. [...] A person who walks down the street will, inevitably, be visible to any member of the public who is also present. Monitoring by technical means of the same public scene (for example, a security guard viewing through closed-circuit television) is of a similar character. Private-life considerations may arise, however, once any systematic or permanent record comes into existence of such material from the public domain. [...].

59. The Court's case-law has, on numerous occasions, found that the covert taping of telephone conversations falls within the scope of Article 8 in both aspects of the right guaranteed, namely, respect for private life and correspondence. While it is generally the case that the recordings were made for the purpose of using the content of the conversations in some way, the Court is not persuaded that recordings taken for use as voice samples can be regarded as falling outside the scope of the protection afforded by Article 8. A permanent record has nonetheless been made of the person's voice and it is subject to a process of analysis directly relevant to identifying that person in the context of other personal data)." (emphasis by the Chamber).¹¹

34.

The Chamber also points to the judgment in Endemol Shine, in which the Court of Justice of the European Union (hereinafter 'Court of Justice') ruled that "Article 2, paragraph 1, and Article 4, point 2, GDPR must be interpreted as meaning that the oral provision of information about potentially pending or closed criminal cases against a natural person..."

¹⁰ ECHR, Judgment of 25 September 2001, P.G. and J.H. v. the United Kingdom, paragraphs 56-59.

¹¹ Free translation by the Chamber:

56. Article 8 also protects the right to identity and personal development, and the right to establish and develop relationships with other people and the outside world [...]. There is thus a zone of interaction of a person with others, even in a public context, which may fall within the scope of 'private life'.

57. A person walking down the street will inevitably be visible to any member of the public who is also present. Monitoring by technical means of the same public scene (for example, a guard watching via closed-circuit television) has a similar character. However, tensions regarding personal privacy may arise once a systematic or permanent record of such material from the public domain is created.

59. The case law of the Court has repeatedly held that the covert recording of telephone conversations falls within the scope of Article 8 for both aspects of the guaranteed right, namely respect for private life and correspondence. Although the recordings are generally made for the purpose of using the content of the conversations in some way, the Court is not convinced that recordings made for use as voice samples can be considered outside the scope of the protection afforded by Article 8.

Nonetheless, a permanent recording of the individual's voice has been made, and it is subject to an analysis process that is directly relevant to identifying that person in the context of other personal data).

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person constitutes a processing of personal data within the meaning of Article 4, point 2, of this regulation [...]"¹².

35.

The Dispute Chamber first assesses the processing of personal data within the innovation project. It distinguishes between the recording and processing of raw audio files and the calculation and

processing of voiceprints.

II.2.1. Raw Audio Files

36.

The Inspection Service establishes that sounds of professional quality are recorded 24/7 from thirty different sensors for a duration of forty weeks, without distinguishing between sounds with or without voices. These sounds are divided into ten-second fragments and digitized into raw audio files on the sensor itself. Under these circumstances, the Inspection Service states that it is inevitable that “an unpredictable range of special categories of personal data as referred to in Article 9.1 GDPR”¹³ is processed. This applies to both the separate ten-second fragments and the consecutive fragments of each ten seconds.

37.

Both the processor and the respondent assert that no processing of personal data took place, at most that such processing was purely speculative/hypothetical and was in no case demonstrated. Both primarily rely on the requirement of Article 4.1 of the GDPR that a person must be identified or identifiable, which would not be the case. They also state that any potential processing of personal data would be limited because the raw audio files were only forwarded to the server if a certain sound level was exceeded.

Assessment of the Dispute Chamber

38.

Article 4.1 of the GDPR defines personal data as “any information relating to an identified or identifiable natural person.” The Court of Justice has already ruled in several judgments that the words ‘any information’ indicate the intention of the EU legislator to give this concept a broad meaning, “which potentially extends to any kind of information, both objective information and subjective information, in the form of opinions or assessments, provided that this information ‘concerns’ the data subject.”¹⁴

12 CJEU, Judgment of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, paragraph 39.

13 Document 83, Investigation Report, p. 65.

14 CJEU, Judgment of March 7, 2024, IAB Europe v. Data Protection Authority, C-604/22, EU:C:2024:214, paragraph 36.

See also: CJEU, Judgment of May 4, 2023, F.F. v. Österreichische Datenschutzbehörde, C-487/21, EU:C:2023:369, paragraph 23 and by analogy CJEU, Judgment of December 20, 2017, Nowak, C-434/16, EU:C:2017:994, paragraph 34.

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39.

First, the Dispute Chamber establishes that voices are being recorded. The inspection report demonstrates that the sound sensors permanently record sound and store it on the sensor for eight hours with professional quality and within the frequency range of the human voice.¹⁵ The European Data Protection Board (hereinafter ‘EDPB’) points out that “the voice of the data subject itself constitutes personal data”¹⁶. In this case, the location of the person speaking can also be inferred based on the location of the sensor that processed the voice.

40.

Second, the Dispute Chamber rules that the substantive information from the recorded conversations may contain personal data. Given that most of the thirty sound sensors are not higher than the first floor and that they permanently record sound with sufficient quality to capture conversations nearby, it can be stated with near certainty that conversations between passersby in this busy student area are recorded audibly, as stated by the Inspection Service. It is inevitable that during such conversations, information is exchanged between the participants about themselves or about an identified or identifiable person.

41.

In this context, the Dispute Chamber finds that it was not necessary for the purposes of the innovation project to process intelligible voices or conversations. The technical analysis of the Inspection Service

has shown that it is possible to reduce the quality and duration of the recordings such that classification of sounds would still be possible, but no voices or conversations could be recognized. Neither the respondent nor the processor demonstrates that they have taken measures to make the processing of intelligible voices and conversations impossible.

42.

The division into ten-second fragments does not detract from this finding, as it is technically possible to stitch consecutive fragments together and thus reconstruct an entire conversation within the range of the sensor, which was confirmed by the processor to the DPO of the respondent¹⁷. Furthermore, the Inspection Service has shown that it is possible to capture limited personal information within ten seconds.¹⁸ The respondent or processor does not demonstrate anywhere that such a possibility was made technically impossible prior to processing.

15 Document 83, Investigation Report, p. 35-37.

16 EDPB Guidelines 01/2022 on the rights of data subjects – right of access, version 2.1 of March 28, 2023, paragraph 155.

17 Annex to Document 38: Quotes: Quote A002153_nr3 Preventing Noise Pollution by Y_1, p. 33.

18 Document 83 Investigation Report, p. 64-65.

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43.

The Dispute Chamber follows the Inspection Service when it establishes that it is unavoidable for personal data from the special category of personal data under Article 9.1 of the GDPR to be processed. In this regard, the Dispute Chamber takes into account the total duration of the project and the recordings, the heavily trafficked project area, the division into segments of ten seconds, and the quality of the recordings. People inevitably talk, even on the street, about politics, their medical situation or that of a mutual acquaintance, their background, their sexual orientation, etc. Neither the respondent nor the processor demonstrates that they have taken any measures to avoid or make impossible the processing of such sensitive information.

44.

The respondent points out in its conclusions the purely hypothetical/speculative nature of these findings, given that it is uncertain whether the sensors would capture human speech. However, the Dispute Chamber notes that the purpose of the innovation project is to capture noise pollution and categorize it. One main class is “voice noise,” which is divided into four subclasses: ‘shouting/fighting,’ ‘singing,’ ‘howling/screaming,’ and ‘talking’¹⁹. Furthermore, the processor asserts that it can distinguish between large or small groups of people producing these sounds within these four subclasses.²⁰ This contradicts the respondent's claim that it would be speculative to suggest that intelligible voice sound is captured. Moreover, the respondent argues in its reply that “noise nuisance from human disturbance”²¹ is indeed a problem in the city and that “the corresponding processing of personal data associated with this – is necessary for the fulfillment of a task of general interest”²². The inspection report identified a less privacy-intrusive alternative to achieve the goal, namely activating nudging based solely on sound intensity, without recording the sounds. The respondent refutes the alternative proposed by the Inspection Service in its conclusions: “However, this alternative approach would not lead to the achievement of the project's objective, namely combating nighttime noise originating from human sources [...]”²³ (emphasis in the original text). As already stated by the Inspection Service, the Dispute Chamber does not follow the respondent when it claims that capturing intelligible human speech is merely hypothetical or speculative.

19 Annex to document 38 Offers: presentation slides – Preventing noise pollution through innovation in the s_2, slide 24 and Annex to document 38: Offers: Offer A002153_nr3 Preventing noise pollution through Y_1, p. 6.

20 Annex to document 38: Offers: Offer A002153_nr3 Preventing noise pollution through Y_1, p. 5: “Note that distinguishing between a ‘small’ or ‘large’ group is sometimes difficult and that this seems only somewhat possible for the checked classes.”

21 Document 124, Reply conclusion of the respondent, paragraph 39.

22 Ibid, paragraph 41.

23 Ibid, paragraph 45.

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45.

The respondent also points to the objective trigger that must be exceeded before the raw audio files and the MEL spectrograms are forwarded to the server cluster. The Dispute Chamber rules that this argument is not relevant, given that the processing of personal data has already commenced prior to the calculation of this objective trigger and the forwarding of the raw audio files. This is confirmed by the respondent when it states that “the raw audio files, when no trigger occurred [...] were only stored locally and encrypted [...]”²⁴.

46.

Both the respondent and the processor finally state in their conclusions that any recorded communication cannot be reduced to an identified or identifiable person, which means that one cannot speak of personal data. However, this contradicts what the competent alderman of the city communicated to the complainant on May 20, 2022, in which she confirmed: “The raw data can indeed contain information that (indirectly) allows for the identification of the data subject. This capture cannot be anonymized. However, this concerns exceptional, indirect identification.”²⁵

47.

It must first be noted that the raw audio files do not relate to ‘identified’ persons. Therefore, it must be examined whether the data relates to an ‘identifiable’ natural person.

48.

The Court of Justice clarifies the concept of “identifiability” by stating that “all means that can reasonably be expected to be used by the data controller or by another person to identify natural persons directly or indirectly, for example, selection techniques, must be taken into account.”²⁶ The Court of Justice ruled in the judgment IAB Europe that the term ‘indirect’ in Article 4.1 GDPR means that “it is not necessary for the qualification of information as personal data that this data, by itself, makes it possible to identify the data subject [...]. On the contrary, it follows from Article 4, point 5 GDPR, read in conjunction with Recital 26 of this regulation, that personal data that can be linked to a natural person through the use of additional information must be considered as data concerning an identifiable natural person [...]”²⁷

49.

First, the Dispute Chamber rules that it is possible that both the identity of the person speaking and sufficient elements for the identification of the person about whom

24 Ibid, paragraph 23.

25 Document 6, Audio recordings Antwerp - Mediation, email, p. 3.

26 CJEU, Judgment of May 4, 2023, F.F. v. Österreichische Datenschutzbehörde, C-487/21, EU:C:2023:369, paragraph 25.

27 CJEU, Judgment of March 7, 2024, IAB Europe v. Gegevensbeschermingsautoriteit, C-604/22, EU:C:2024:214, paragraph 39.

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It is stated that the recordings may form part of the recorded conversation. The respondent or processor does not demonstrate anywhere that such a possibility was technically made impossible prior to the processing.

50.

Furthermore, the Disputes Chamber establishes that the respondent frames the processing of these recordings within its general police powers under Article 135 §2 of the Municipal Law.²⁸

Within this authority, the respondent, as the data controller, has access to various resources, including, among others, data from the local police, the municipal enforcement officers, various databases including the national register, and a fixed camera network. All these resources can be employed in the context of the same objective as this innovation project, namely combating violations of public order and addressing all forms of public nuisance. In this context, the respondent cites case law from the Council of State that confirms its powers for preventive police measures.²⁹ The complainant mentions the cameras that have been installed in the same neighborhood with the same objective and

which are managed by the same data controller.³⁰

51.

The respondent also refers to Article 2 of the Local Government Decree³¹ and to the fact that “making night noise is punishable under Article 561 of the Penal Code.”³² It can reasonably be expected that all these means/initiatives could be used by the respondent for the identification of individuals whose voice/conversation has been captured.

52.

In the case of Breyer, the Court of Justice ruled that a dynamic IP address constituted personal data when the provider of online media services “has legal means by which it can identify the person concerned based on additional information held by that person's internet provider.”³⁴ It is important in this regard

28 Document 124, reply conclusion of the respondent, paragraph 36.

29 Ibid, paragraph 35.

30 Document 122, reply conclusion of the complainant, pp. 4-5.

31 Article 2 Local Government Decree: [...]

§ 2. The municipalities are competent for matters of municipal interest in accordance with Article 41 of the Constitution. For the realization of this, they can take all initiatives. They aim to contribute to the sustainable development of the municipal area.

In accordance with Article 6, § 1, VIII, second paragraph, of the special law of August 8, 1980, on the reform of institutions and Article 46 of the ordinary law of August 9, 1980, on the reform of institutions and applying the principle of subsidiarity, the municipalities also exercise the powers entrusted to them by or under the law or the decree.

[...]

32 Article 561 Penal Code: “Shall be punished with a fine of ten [euros] to twenty [euros] and with imprisonment of one day to five days or with one of those penalties alone:

1° Those who commit night noise or nighttime disturbance that can disrupt the peace of the residents;”

33 Document 124, reply conclusion of the respondent, paragraph 40.

34 CJEU, Judgment of October 19, 2016, Patrick Breyer v. Federal Republic of Germany, C-582/14, EU:C:2016:779, paragraph 49.

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is that the internet service provider in this case was not allowed under German law to pass on the additional information to the provider, but that there are indeed “legal possibilities [...] to turn to the competent authority, particularly in the event of cyberattacks, so that it takes the necessary steps to obtain that information from the internet provider and to initiate prosecution.”³⁵ The Court of Justice followed the Advocate General in his assessment that this would not be the case if “the identification of the person concerned is prohibited by law or is practically impossible.”³⁶ The city, as the data controller, has sufficient legal means at its disposal, such as access to the national register or the deployment of local police and municipal enforcement officers, which, at least for serious reasons, can lead to the identification of the person whose voice or conversation has been recorded. There is no law that prohibits the identification of this person.

53.

The Inspection Service has also pointed out this broader context by citing various policy documents from the city, such as the “Vision Document Smart Cities”³⁷ from 2017 and the policy document “The Digital Future of Antwerp”³⁸ from 2021. The Inspection Service notes that “the project originally set higher ambitions [...] It also aimed to combat other nuisance phenomena in the neighborhood and provided for a city-wide dashboard that also included data sharing with the police.”³⁹ In this context, the Dispute Chamber also refers to the Best and Final Offer of the processor (hereinafter ‘BAFO’) and the ‘comments and questions DPO’ that have been added as appendix 2 to the BAFO. In response to the DPO's request to limit access to the audio data, the processor states: “This will happen anyway: only the operators responsible for labeling the sounds, training the classification models, or possibly the actual handling/treatment of the noise nuisance will have access to the audio data.”⁴⁰ (emphasis by the Dispute Chamber).

54.

Contrary to what the respondent argues in her conclusions, she was already aware through the advice of her DPO that personal data was indeed being processed in the processing of the raw audio files. In the advice from the respondent's DPO dated November 22, 2021, this primarily referred to the processing of anonymous personal data. However, in the section on data retention, the DPO stated: "[...] The data will be anonymized. It is unclear whether and how long the non-anonymized personal data (e.g., voices) will be retained in the measuring devices."⁴¹ In the advice from the city's DPO dated February 25, 2022, the DPO states: "For the training of the sound detection system, sounds – including personal data, namely human voices and conversations – will be processed."⁴²

55.

Moreover, within the innovation project, a subjective trigger has been provided in the form of a reporting app through which neighborhood residents can report noise nuisance. This report consists of, among other things, the location and time of the nuisance and also includes a free text field to describe the noise nuisance. This report is linked to the raw audio file from the same location at the same time to convert the raw audio files from that time into MEL spectrograms in order to train the AI software. The Dispute Chamber notes based on an excerpt from these subjective reports that noise nuisance was reported with the comment: "[street name and house number], Dutch students in Airbnb."⁴³ This information is linked within the innovation project to the relevant raw audio file and makes the identification of the present individuals reasonably possible through this means if linked with other resources of the respondent, such as access to the national register or a site visit by the local police.

56.

The Dispute Chamber rules that the raw audio files containing human speech are personal data within the meaning of Article 4.1 of the GDPR and that it is inevitable that these raw audio files contain personal data of the special category as defined in Article 9.1 of the GDPR. Furthermore, the Dispute Chamber finds that the city's DPO had reached the same conclusions regarding the processing of personal data and that the respondent was therefore not unaware of this processing.

II.2.2. Voiceprints

57.

As a preliminary remark, the Dispute Chamber clarifies that throughout the documents, the terms 'MEL spectrograms' and 'voiceprints' are used interchangeably. The MEL spectrogram is the (visual) representation of a specific sound. The voiceprint is the (visual) representation of a specific voice sound. In this case, the voiceprint is a MEL spectrogram of a specific voice sound. Where a MEL spectrogram is not explicitly referred to, the Dispute Chamber uses the term voiceprint throughout its decision, as it concerns the sound of voices. In quotes from other documents in the file, however, the Dispute Chamber adopts the term used in the quote.

⁴¹ Appendix to document 38: 004 – 20211115_advice_DPO_Neighborhood_Noise, p. 4.

⁴² Appendix to document 38: 004 – 20220225_advice_DPO_Noise_Student_Neighborhood, p. 1.

⁴³ Document 83, Report of the Investigation, p. 211.

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58.

The Inspection Service states that the voiceprints are biometric personal data within the meaning of Article 4.14 of the GDPR. The raw audio files are converted into MEL spectrograms through a technical processing. This MEL spectrogram is "a so-called 'representation' or 'depiction' of sound, which is commonly used for speech and speaker recognition and can thus serve if the spectrogram is calculated based on human voice sound"⁴⁴. The Inspection Service has also demonstrated that there "was no use of anonymization techniques at the level of the [...] MEL spectrograms."⁴⁵

59.

In its investigation into whether the voiceprints can lead to a direct or indirect identification of the data subject, the Inspection Service concludes that neither the respondent nor the processor has means that can reasonably be expected to be used for the identification of a data subject for whom a voiceprint was calculated. However, since the voiceprints pass unencrypted on the Google cloud and since this sub-processor itself uses voiceprints for its services, Google may therefore have sufficient

additional information that could enable the identification of the unencrypted MEL spectrograms processed on its systems.

60.

Finally, the Inspection Service points out that given the biometric nature of the voiceprints and the state of technology regarding this matter, it must be taken into account that a third party, not involved in the processing, could potentially identify these voiceprints with additional information, now or in the future.

61.

The respondent points out that a “mere processing of voiceprints by itself [cannot] (reasonably) [...] lead to such unequivocal identification of a person [...]”⁴⁶. In this regard, the respondent cites the recommendation concerning biometric data of December 1, 2021, from the Data Protection Authority, which speaks of the need to first conduct a collection phase with identity registration; this initial phase was never carried out in the innovation project.

62.

Regarding the unencrypted storage of the voiceprints at Google, the respondent first questions whether this sub-processor would effectively have access to these voiceprints and whether this sub-processor has a database of voiceprints to compare the stored voiceprints with. The respondent refers to Google's privacy statement.

44 Ibid, p. 80.

45 Ibid, p. 90.

46 Document 124, conclusion of the respondent's reply, paragraph 24.

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63.

The respondent is of the opinion that a clear identification by another person cannot reasonably be expected, “at least this is certainly open to some interpretation and discussion.”⁴⁷ She judges that sufficient measures were taken to exclude a clear identification.

Assessment by the Dispute Chamber

64.

In *S. and Marper v. the United Kingdom*, the ECHR⁴⁸ stated:

”86. The Court is of the view that the general approach taken by the Convention organs in respect of photographs and voice samples should also be followed in respect of fingerprints. The Government distinguished the latter by arguing that they constituted neutral, objective and irrefutable material and, unlike photographs, were unintelligible to the untutored eye and without a comparator fingerprint. While true, this consideration cannot alter the fact that fingerprints objectively contain unique information about the individual concerned, allowing his or her identification with precision in a wide range of circumstances. They are thus capable of affecting his or her private life and the retention of this information without the consent of the individual concerned cannot be regarded as neutral or insignificant. (emphasis in the original text)”⁴⁹

The Dispute Chamber follows the ECHR, which states that a voiceprint, just like a fingerprint, ‘objectively contains unique information’ about an individual that allows this person to be ‘precisely identified in a wide range of circumstances.’

65.

The Dispute Chamber finds that a MEL spectrogram of a sound fragment of a voice, if sufficiently isolated and without too much background noise, is a voiceprint of a specific person. This voiceprint falls within the collection of ‘all information’ about a person as referred to in Article 4.1 of the GDPR.

66.

Regarding the identifiability of the person, the Dispute Chamber notes that the Inspection Service conducted its investigation based on the biometric information from the voiceprint. To this end, the respondent would therefore need to have (external) identified biometric information that can be compared with the biometric information from the project in order to achieve an identification. The Dispute Chamber

47 Ibid, paragraph 29.

48 ECHR, Judgment of 4 December 2008, *S. and Marper v. the United Kingdom*, paragraph 86.

49 Free translation by the Dispute Chamber:

86. The Court is of the opinion that the general approach taken by the Convention organs in respect of photographs and voice samples should also be followed in respect of fingerprints. The Government distinguished the latter by arguing that they constituted neutral, objective and irrefutable material and, unlike photographs, were unintelligible to the untutored eye and without a comparator fingerprint. While true, this consideration cannot alter the fact that fingerprints objectively contain unique information about the individual concerned, allowing his or her identification with precision in a wide range of circumstances. They are thus capable of affecting his or her private life and the retention of this information without the consent of the individual concerned cannot be regarded as neutral or insignificant.

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The Inspection Service and the respondent agree that there are no indications suggesting that the respondent or the processor possesses such identified biometric information.

67.

However, the Dispute Chamber does not follow the Inspection Service when it states: “We can conclude from this that the data controller did not have means that could reasonably be expected to be used to identify the data subject based on the biometric personal data stored in the MEL spectrograms.” Within the project, raw audio files of voices are indeed recorded and processed. In paragraphs 48 to 56, the Dispute Chamber ruled that these raw audio files are reasonably identifiable to the respondent. These raw audio files are converted within the project into MEL spectrograms to train the AI software and to classify the audio fragments. The Dispute Chamber rules that if the raw audio files containing voice sound are reasonably identifiable, the voiceprints calculated directly by the same party based on these specific raw audio files are also reasonably identifiable.

68.

Regarding identification by a third party, the Dispute Chamber first refers to the judgment *S and Marper* by the ECHR cited in paragraph 64: “this consideration [cannot] detract from the fact that fingerprints contain objectively unique information about the data subject, allowing him or her to be accurately identified in a wide range of circumstances.” (translation and emphasis by the Dispute Chamber). The Dispute Chamber has already pointed out the analogy established by the Court between a fingerprint and a voiceprint.

69.

In this context, the Inspection Service referred to Google's capabilities to demonstrate that even within the project, there may be a third party present that can identify individuals based on the voiceprints. Even though Google refers in its privacy statement to a strict policy regarding these identification capabilities, the Dispute Chamber is of the opinion that identification by this sub-processor is reasonably possible, especially since the voiceprints were not encrypted and were available to this sub-processor.

70.

The Dispute Chamber also takes into account the technical analysis of the Inspection Service that the MEL spectrograms are calculated based on the raw audio files. The inverse calculation, from MEL spectrograms back to raw audio, is also possible albeit with a certain loss of quality. The degree of quality loss is, however, unknown and would need to be tested, but since the voiceprints can serve for speech and speaker recognition, it is plausible that the quality is sufficient to restore the relevant raw audio files in an intelligible manner. This also means that the voiceprints may contain data from special categories of personal data, just like the raw audio files. The respondent or processor does not demonstrate anywhere that the inversion of the voiceprints prior to processing has been rendered technically impossible.

71.

Finally, the Dispute Chamber points to Article 4.14 of the GDPR, which defines the concept of ‘biometric data’. A voiceprint is the result of specific technical processing related to physiological and behavioral characteristics on the basis of which unambiguous identification is possible. The Inspection Service convincingly argues in its reasoning that the voiceprint is a biometric data that falls within this

definition in the GDPR.

Conclusion

72.

Within the innovation project, two sets of personal data are processed that are applicable to the complaint.

73.

The raw audio files containing human speech are, on the one hand, identifiable personal data of the participants in the conversation that was recorded. The voice of the speaker is a personal data and is linked to his location at that moment. Given the capabilities of the respondent, it can reasonably be assumed that they could identify the voices. The raw audio files containing human speech may, on the other hand, contain personal data in the form of conversations between passersby in which data of an identified or identifiable person are exchanged. In this regard, the processing of personal data of the special category of personal data under Article 9.1 of the GDPR is unavoidable.

74.

The voiceprints are, on the one hand, biometric personal data of the participants in the recorded conversation. These voiceprints are identifiable by the respondent because they are directly linked to the identifiable raw audio files. These voiceprints are also potentially identifiable by third parties, including, among others, the sub-processor Google, given the objective information that such biometric data contains.

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The voiceprints are, on the other hand, also personal data that inevitably contain data from the special category of personal data, as the raw audio files can be recalculated based on these voiceprints.

75.

Based on the above, the Dispute Chamber finds that in this case it is inevitable that the processing of the raw audio files containing human speech and the voiceprints will involve the processing of data from special categories of personal data.

II.3. Interest of the complainant

76.

The inspection report establishes that the complainant "lives in the vicinity (or at least in an adjacent street) where the project will take place."⁵⁵

77.

The complainant states that he lives close to the project area and regularly passes through this zone. He was also present at the first neighborhood committee where this innovation project was presented. In his initial inquiries regarding the project, he was considered by the respondent as an interested party, as the respondent answered his questions.

78.

The respondent raises serious questions regarding the status of the complainant. The respondent believes that "it is in no way established [nor] is it even remotely demonstrated [...] that personal data, let alone personal data of (respectively concerning) the complainant, were processed [...]"⁵⁶ The respondent continues: "In the absence of any evidence of the required status, the complaint of the complainant can be regarded as little more than a so-called *actio popularis*, which according to the Constitutional Court is not admissible in Belgium."⁵⁷

79.

During the hearing, the respondent clarified that the complainant has never made a request for access and therefore cannot demonstrate that his personal data has been processed. For this reason, the complainant would also never be able to demonstrate his interest.

Assessment of the Dispute Chamber

80.

Article 58 of the WOG states: "Anyone can submit a complaint or request in writing, dated and signed, to the Data Protection Authority." In accordance with Article 60.2 of the WOG, a complaint is admissible when it:

- is drawn up in one of the national languages;

55 Document 83, Inspection Report, p. 8.

56 Document 124, Respondent's reply conclusion, paragraph 12.

57 Ibid.

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- contains a statement of the facts, as well as the necessary indications for the identification of the processing to which it relates;

- falls within the competence of the Data Protection Authority.

81.

The Dispute Chamber has previously ruled as follows:

"Although the GDPR approaches the 'complaint' from the perspective of the data subject, by imposing obligations on the supervisory authorities when a person submits a complaint (see Articles 57, 1., f) and 77 of the GDPR), the GDPR does not prevent national law from allowing persons other than the data subjects to submit a complaint to the national supervisory authority. The possibility of such a filing also corresponds with the tasks assigned to supervisory authorities by the GDPR. In that respect and generally speaking, each supervisory authority ensures: the monitoring and enforcement of the application of the GDPR (Article 57, 1., a) GDPR), and the performance of all other tasks related to the protection of personal data (Article 57, 1., v) GDPR)."58

82.

In short, the WOG does not exclude that someone other than the data subject or the person authorized by the data subject, as referred to in Article 80 of the GDPR and elaborated in Article 220 of the Act of July 30, 2018, concerning the protection of natural persons with regard to the processing of personal data, can submit a complaint to the GBA.

83.

More specifically, the Dispute Chamber rules that Article 58 WOG provides every person the opportunity to submit a complaint, provided that the complainant demonstrates that he has sufficient interest.

84.

In a previous decision of the Dispute Chamber⁵⁹, the interest of the complainant was rejected based on an alleged 'actio popularis'. The complainant did not show any interest in the processing of camera footage in a car wash without the visitors being aware of it. In this complaint, however, the complainant merely referred to a public interest, "consisting of the protection of the privacy rights of every citizen who uses the services of the car wash with his car [...]"⁶⁰. In that complaint, there was indeed the use of the camera footage as evidence against a customer and the posting of this camera footage on Facebook. At that time, the complainant was not a victim of these practices.

58 See e.g. Decision of the Dispute Chamber 106/2022 of June 28, 2022; Decision of the Dispute Chamber 117/2021 of October 22, 2021, and Decision of the Dispute Chamber 80/2020 of December 17, 2020.

59 Decision of the Dispute Chamber 80/2020 of December 17, 2020.

60 Ibid, paragraph 50.

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85.

In his complaint against the innovation project, the complainant clearly points out his status as a neighborhood resident⁶¹ and the fact that he was present at the first neighborhood meeting⁶².

Furthermore, the complainant stated in a response to the respondent: "I like to walk around as a free citizen who talks on the street without this being recorded."⁶³ The Dispute Chamber rules that the complainant raises the issue of the processing of his own speech data and does not act within the framework of an actio popularis.

86.

The Dispute Chamber has established above that the project processes speech data 24/7 from all individuals who are on the public road within the range of the relevant sound sensors for several months. These sound sensors are set up in a large area in a specific part of the city. The complainant does not live in the target area but demonstrates that he lives very close to this target area, namely on

a street that borders this zone, and that he regularly moves through this zone on foot or by bicycle.

Conclusion

87.

The Dispute Chamber rules that the complainant, although he cannot demonstrate that his data has actually been processed, has sufficient interest to file a complaint.

II.4. Data Controller, Processor, and Interested Third Parties

88.

According to Article 4.7 of the GDPR, the following shall be considered the data controller: the “natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data.”

89.

The Court of Justice has repeatedly interpreted the concept of “data controller” broadly in its case law to ensure effective and complete protection of the data subjects.⁶⁴

90.

According to Guideline 7/2020 of the EDPB, the status of the relevant data controller(s) must be assessed in concreto.⁶⁵ According to the same advice, the concepts of “the purpose” and “the means” must be treated inseparably, and it must be established who determines the ‘why’ (the purpose) and the ‘how’ (the means) of the processing.⁶⁶

91.

The Dispute Chamber has already established in paragraphs 72 to 75 that personal data was processed within the meaning of Article 4.2 of the GDPR. The Dispute Chamber finds that the respondent determined the purpose and means of the relevant processing of personal data. The purpose of the innovation project is described in the GEB as “mapping and remedying noise pollution in the student neighborhood of Antwerp using technology”⁶⁷. Furthermore, it is added in this GEB “through nudging techniques”⁶⁸. The means are described in the GEB as follows: “Sound sensors are deployed in the public space. Based on the captured sound fragments, an algorithm is trained for sound classification to drive nudging solutions.”⁶⁹ It is also stated regarding sound classification: “To correctly activate the nudging, a classification of the sounds is necessary. This includes voice sounds of individuals (e.g., people singing or shouting on the street).⁷⁰ The respondent mentions in his conclusion⁷¹ among other things:

- an expression of an intention in the context of ‘City of Things,
- innovation sessions with citizen participation in its city,
- the resulting main objective, namely measuring, classifying, preventing, and remedying nighttime noise,
- the choice of the target area in the city, and
- the decision, in consultation with the second interested party, to collaborate with an external partner, the processor.

92.

Furthermore, in accordance with Article 28 of the GDPR, a processing agreement was concluded on April 6, 2022, between the respondent and the processor, with the former being designated as the data controller.⁷² The respondent is also identified as the data controller in the GEB.

93.

The Dispute Chamber finally notes that there is no dispute regarding the status of the data controller. The respondent is referred to as the data controller by the Inspection Service, the processor, and the complainant.

⁶⁶ Ibid, paragraph 36.

⁶⁷ Annex to document 38, 001 – DPIA Noise Pollution Student Neighborhood, p. 4.

⁶⁸ Ibid, p. 8.

⁶⁹ Ibid, p. 10.

⁷⁰ Ibid, p. 8.

⁷¹ Document 124, respondent's reply conclusion, paragraph 1-3.

⁷² Annex to document 38, 007 – 2022_BBDMV_00009_Processing

Agreement_City_Antwerp_and_[processor], p. 1 and p. 3.

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does not oppose this finding. In its conclusions, the respondent acknowledges being the data controller in the context of the project.⁷³

Conclusion

94.

Based on the above, the Dispute Chamber determines that the respondent should be regarded as the data controller within the meaning of Article 4.7 of the GDPR for the processing of raw audio files and voiceprints. Consequently, in this capacity, it is obliged, in accordance with the accountability obligation set out in Articles 5.2 and 24 of the GDPR, to ensure compliance with the principles and provisions of the GDPR.

95.

In addition to the processor as the first interested third party, the inspection report identified a second interested party, namely the body that provided subsidies to the respondent for carrying out the innovation project. This second interested party was invited to conclude but failed to do so.

II.5. Legality of the Processing

96.

The Inspection Service establishes that the respondent bases the processing of personal data on the legal ground of Article 6.1.e of the GDPR, which pertains to a task carried out in the public interest or in the exercise of official authority (hereinafter 'legal ground public interest'). However, it concludes that the respondent could only rely on consent for the processing of raw audio files and that it could not base the processing of voiceprints on the legal ground of public interest.

97.

The complainant believes that the legal ground of public interest under Article 6.1.e of the GDPR may be applicable for the processing in question, but only after the algorithm has been trained based on consent.

98.

The respondent supports the processing on the legal ground of public interest contained in Article 135, §2 of the Municipalities Act. Addressing nighttime noise falls under public order and is derived from this article. To combat this nighttime noise, it is necessary first to collect sufficient data to train the AI, after which preventive actions (nudging) can be taken to ensure the rest of the neighbors.

Assessment of the Dispute Chamber

99.

The processing of personal data through intelligent sound sensors is only lawful if it is carried out in accordance with Article 6.1 of the GDPR. The Dispute Chamber

⁷³ Document 124, conclusion of the respondent's reply, paragraph 18.

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determines, after analysis, that only the legal ground of public interest can be applied for the relevant processing. In paragraph 75, it was determined that both the raw audio files and the voiceprints inevitably contain special categories of personal data. The Court of Justice has previously ruled that in the case of processing personal data that may relate to both sensitive data within the meaning of Article 9.1 of the GDPR and non-sensitive data, and if these data cannot be separated, "the processing of the entire data set must be considered prohibited under Article 9, paragraph 1, GDPR, since all that data together contains at least one sensitive piece of data [...]"⁷⁴. The data controller must therefore also demonstrate that one of the exceptions to the general prohibition on processing this type of personal data, listed in Article 9.2 of the GDPR, applies.

100. As the Dispute Chamber has previously stated⁷⁵, processing of special categories of personal data within the meaning of Article 9 of the GDPR must be based on Article 9.2 of the GDPR read in conjunction with Article 6.1 of the GDPR. This is confirmed in Recital 51 of the GDPR, which states regarding the processing of special categories of personal data that "in addition to the specific provisions for that processing, the general principles and other rules of this regulation [must] be

applied, particularly with regard to the conditions for lawful processing” and in the META ruling⁷⁶.
101. Both the complainant and the Inspection Service suggest that the processing can be based on Article 6.1.a of the GDPR (consent). The Dispute Chamber rules that consent in this context cannot be freely given. There is indeed a clear imbalance between the data controller as a government entity and the residents in its city. There is also no realistic alternative given that it concerns a relatively large project area in a busy city. If a person were to withhold consent, this would practically mean that he or she could no longer enter this public space.

102. For a data controller to invoke Article 6.1.e) of the GDPR to process personal data, this processing must be necessary for the fulfillment of a task carried out in the public interest or a task in the exercise of official authority that has been assigned to the data controller. In these cases, the processing must always have a legal basis in law.

74 CJEU, Judgment of July 4, 2023, Meta Platforms Inc. v. Bundeskartellamt, C-252/21, EU:C:2023:537, paragraph 89.

75 See, among others, Decision of the Dispute Chamber 76/2021 of July 9, 2021, paragraph 33.

76 CJEU, Judgment of July 4, 2023, Meta Platforms Inc. v. Bundeskartellamt, C-252/21, EU:C:2023:537, paragraph 90. See also EDPB Guidelines 3/2019 on the processing of personal data through video equipment, version 2.0 of January 29, 2020, paragraph 68.

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of the European Union or that of the relevant Member State, in which the purpose of the processing must also be recorded.

103. Pursuant to Article 6.3 and Recital 45 of the GDPR, processing based on Article 6.1(e) of the GDPR must, in other words, meet the following conditions:

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The data controller must be tasked with fulfilling a public interest task or a task that is part of the exercise of public authority based on a legal basis, regardless of whether it is enshrined in the law of the European Union or in the law of the Member States;

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The purposes of the processing are laid down in the legal basis or must be necessary for the execution of the public interest task or the exercise of public authority.

It must therefore first be verified whether these conditions are met in the case of the innovation project.

104. According to Article 2 of the Decree on Local Government, municipalities can exercise powers entrusted to them by a law or a decree. Article 135, §2 of the Municipalities Act entrusts a municipality with the power to ensure good order. More specifically, the defendant refers to the powers from Article 135, §2, 2°, 3° and 7° of the Municipalities Act. The purposes of the processing according to these provisions are

2°: to counteract breaches of public peace,

3°: to maintain order in places where many people gather, and

7°: to counteract all forms of public nuisance.

The Disputes Chamber finds that the cited legal basis meets the conditions of Article 6.3 of the GDPR.

105. In addition to the mandatory conditions of Article 6.3 of the GDPR, this same article also states that additional elements "may" be specified in the legal norm: "That legal basis may contain specific provisions to adapt the application of the rules of this regulation, including the general conditions regarding the lawfulness of processing by the data controller; the types of processed data; the data subjects; the entities to whom and the purposes for which the personal data may be disclosed; the purpose limitation; the retention periods; and the processing activities and procedures [...]".

106. The Disputes Chamber points out in this regard that in accordance with the aforementioned Article 6.3 of the GDPR, read in conjunction with Article 22 of the Constitution and in light of Articles 7 and 8 of the Charter of Fundamental Rights of the European Union, a legislative norm must establish the essential characteristics of a data processing that is necessary for the execution of a public interest task or for the exercise of public authority entrusted to the data controller. The Disputes Chamber emphasizes that the processing in question must be framed by a norm that is sufficiently clear and precise, the application of which is foreseeable for the individuals concerned. In accordance with

Article 6.3 of the GDPR, the precise purpose(s) of the processing must be included in the legal norm itself. Furthermore, the following elements must be foreseeable:

- the identity of the data controller(s),
- the categories of processed data, provided that these comply with Article 5.1 of the GDPR, "adequate, relevant and limited to what is necessary for the purposes for which they are processed,"
- the categories of data subjects whose data will be processed,
- the retention period of the data,
- the recipients or categories of recipients to whom their data will be disclosed,
- the circumstances under which and the reasons for which they will be disclosed, and
- any limitation of the obligations and/or rights mentioned in Articles 5, 12 to 22, and 34 of the GDPR.

107. The Disputes Chamber finds that the legislator has failed to determine these essential characteristics of the processing of personal data for the relevant articles, and thus for the pursued objectives.

108. The defendant points out in her conclusion 'all initiatives' that she can take in the context of the municipal matters of Article 2, §2 of the Decree on Local Government. Article 119 of the Municipalities Act provides the defendant with the

79 Document 124, defendant's reply conclusion, paragraph 36.

80 Article 119 Municipalities Act: "The municipal council makes the municipal regulations of internal administration and the municipal police regulations, [...]"

These regulations and ordinances may not conflict with the laws, decrees, ordinances, regulations, and decisions of the State, the Regions, the Communities, the Community Commissions, the provincial council, and the permanent deputation of the provincial council. [...]"

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means of the police regulations. Nowhere in its conclusions does the respondent, however, refer to any police regulation that contains provisions regarding the processing of personal data in the context of the innovation project. For that reason, the Dispute Chamber rules that the processing of personal data within the innovation project cannot be categorized as an initiative within the framework of a matter of municipal interest based on a police regulation.

109. The Dispute Chamber has already pointed out that tasks of general interest or public authority with which data controllers are entrusted are often not based on precisely defined obligations or legislative standards that establish the essential characteristics of the data processing. Rather, processing occurs on the basis of a more general authorization to act, such as for the fulfillment of a task that is necessary. This leads to the relevant legal basis often lacking concretely defined provisions regarding the necessary data processing in practice. Data controllers who wish to invoke Article 6.1.e) of the GDPR based on such a legal basis must then make their own assessment between the necessity of the processing for the task of general interest and the interests of the data subjects.

110. The Court of Justice has expressed itself in the judgment Huber regarding this condition of necessity:

"Given the objective of providing equivalent protection in all Member States, the concept of necessity as it emerges from Article 7(e) of Directive 95/46, which aims to provide a precise delineation for one of the cases in which the processing of personal data is permissible, must therefore not have a content that differs from Member State to Member State. It is consequently an autonomous concept of Community law that must be interpreted in a manner that fully responds to the objective of the directive as described in Article 1(1)." This case law formulated with respect to Article 7(e) of Directive 95/46/EC remains relevant to this day. Article 6(1) of the GDPR indeed adopts the wording of Article 7 of

Directive 95/46/EC.

111. The Court of Justice clarified in the judgment *Schecke* that, if there are realistic and less intrusive alternatives, the processing is not necessary.

81 See, among others, decision of the Dispute Chamber 149/2022 of October 18, 2022, and decision of the Dispute Chamber 124/2021 of November 10, 2021.

82 CJEU, Judgment of December 16, 2008, *Heinz Huber v. Federal Republic of Germany*, C-524/06, EU:C:2008:724.

83 *Ibid*, paragraph 52.

84 CJEU, Judgment of November 9, 2010, *Volker & Markus Schecke GbR and Hartmut Eifert v. Land Hessen*, joined cases C-92/09 and C-93/09, EU:C:2010:662, paragraph 86.

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112.

The Dispute Chamber must therefore assess whether the processing of raw audio files and the sound prints was necessary to counteract violations of public peace, to maintain order in places where many people gather, and to combat all forms of public nuisance as defined in Article 135, §2 of the Municipal Code. For this purpose, the Dispute Chamber will evaluate whether the processing of personal data within the innovation project is proportionate to the legitimate aim and whether there are no other, less intrusive alternatives.

113.

The respondent points out in its conclusions the importance of a good night's sleep and the scientific research surrounding it. It notes that for this reason, nighttime noise is punishable under Belgian criminal law. The prevention of targeted nighttime noise in this innovation project would contribute to a good night's sleep. The Dispute Chamber finds that the Inspection Service, in its investigation into the application of a significant public interest, does not refute this interest at its core but questions why this interest has not been included in the respondent's general policy framework regarding noise nuisance: "Given the above considerations, the disputed pilot project evidently did not fit into the city's own policy framework regarding the combating of noise nuisance and environmental noise and could not, given the nature of the project in relation to the priority problems of urban noise nuisance and environmental noise established in this policy, significantly contribute to addressing these problems."⁸⁵

114.

The Dispute Chamber disagrees with this consideration of the Inspection Service and follows the respondent to the extent that the project serves the objective interest of combating all nighttime noise for the benefit of the residents' sleep. The complainant also acknowledges the need to combat all nighttime noise in the city in the context of a good night's sleep.

The Dispute Chamber rules that the innovation project meets a compelling societal need and thus the interests of those involved.

115.

The innovation project must also be effective for the invoked public interest, or in the words of Article 52.1 of the Charter of Fundamental Rights of the European Union, it must "actually respond to objectives of general interest recognized by the Union." The Dispute Chamber first notes that effectively countering violations of public peace, maintaining order in places where many people gather, and combating all forms of public nuisance are aimed at in the innovation project through the nudging techniques employed. The goal is to gently encourage individuals causing nuisance at the moment to adopt 'less disruptive' behavior without having to intervene effectively with other means. However, the effectiveness of these nudging techniques was not yet clear, which the Dispute Chamber establishes based on:

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the subject of the assignment as described in the award report: "[second stakeholder]-research trajectory in which noise nuisance within the Student District is measured objectively (via sound sensors) and subjectively (via citizen reports) and correlated to subsequently assess the impact of (technological) interventions or nudging techniques on their (positive) impact on this type of nuisance."⁸⁶ (emphasis by the Dispute Chamber)

- the project description from the BAFO in which the penultimate step concerns the nudging techniques and which ends with the “research effectiveness of nudges,” followed by the “reporting effectiveness of nudges” and finally the “presentation report effectiveness of nudges.”⁸⁷ After that, the installation is dismantled.

- the communication from the respondent to the residents to publicize the project, which states: “At the same time, we are testing ways to prevent or at least reduce nighttime noise with technology. [...] In July 2022, we will evaluate the results and communicate them to the participants. Interventions that yield good results will be repeated at the start of the new academic year and, if possible, expanded to other neighborhoods.”⁸⁸

- the collaboration within the project with a third party, which was responsible “for designing and researching smart nudges.”⁸⁹

- the exchanges between the processor and this third party during the project⁹⁰, which include statements such as:

“In the Lange Brilstraat, the lower number of reports indeed seems to persist: [although] it is of course not possible to say with certainty what the reason for this is. Either the nudging caused it, or people are tired of reporting, or there is a completely different explanation.”

“the reports have generally decreased significantly, so I don’t know if this can unfortunately be attributed entirely to the nudging.”

Moreover, the Dispute Chamber notes in the work planning of the BAFO⁹¹ that the nudging was only provided for twice for a short period during the entire

85 Document 83, Report of the Investigation, p. 130.

86 Appendix to document 42, 07-A002153_Award Report_vFAST_Preventing Noise Pollution through Innovation, p. 1.

87 Appendix to document 38: Quotes: Quote A002153_nr3 Preventing Noise Pollution by Y_1, p. 24.

88 Appendix to document 38, 006 – Residents’ letter 1st – 18435886_Neighborhood Buzz_A4_letter_v6_HiRes, p. 1.

89 Appendix to document 38: Quotes: Quote A002153_nr3 Preventing Noise Pollution by Y_1, p. 23.

90 Appendix to document 50, Appendix Part I, question 16 – Email exchange – Notable results nudging periods 1 and 2.

91 Appendix to document 38: Quotes: Quote A002153_nr3 Preventing Noise Pollution by Y_1, p. 24. Decision on the Merits 29/2025 — 36/60

Project Duration. The project lasted a total of 40 weeks, and nudges were sent only during 8 of these 40 weeks.

116.

The Dispute Chamber rules that the effectiveness of the nudging for the cited objectives could not be demonstrated a priori, given that the innovation project was a pilot project. The Dispute Chamber acknowledges that setting up such pilot projects (the outcomes of which are not known in advance) may be necessary to, for example, attempt to mitigate noise pollution using technological means. Although the positive result of the nudging could therefore (still) not be objectively and in advance confirmed, the Dispute Chamber rules that the processing of personal data in this innovation project may be necessary to enable the nudging and to test the effectiveness of the nudging.

117.

Article 6.3 of the GDPR states that “the national law [...] must be proportionate to the pursued legitimate aim.” In other words, it must be demonstrated that nudging through the processing of personal data is proportional to ensuring public peace. In this context, the Dispute Chamber points out that it takes into account the fact that this is a pilot project, that the processing is limited in time, and that the ultimate intention is to achieve effective prevention of nighttime noise through minimal processing of personal data ‘on edge’⁹².

118.

In these circumstances, the Dispute Chamber rules that the processing of raw audio files is proportional to the search for solutions to guarantee the nighttime rest of the neighborhood residents, provided that all principles of personal data processing are adhered to. In any case, it must be avoided that data of the special category of personal data is present in these files. The Dispute Chamber also rules that the processing of the MEL spectrograms, in which voice prints may occur and provided that it is avoided that data of the special category of personal data is present, is proportional to the search for solutions to guarantee nighttime rest, as long as all principles of personal data processing are adhered to.

119.

Subsequently, the Dispute Chamber examines the existence of any other and less intrusive alternatives to achieve the objectives of Article 135 §2 of the Municipal Act. The Dispute Chamber notes that the introduction of Article 135 §2 of the Municipal Act dates back to 1989 and that the addition of Article 135 §2, 7° dates back to

92 A processing 'on edge' in this project is the storage and processing of the recording data on the sensor itself, so that only the result of the processing needs to be sent to the server cluster. The personal data is captured, processed, and interpreted on the sensor within (milli)seconds, and only the sound class is sent to the server. This would mean that the recordings themselves would exist on the sensor for less than a second and would then be deleted.

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1999. At the time of the enactment of this law, technology was not as advanced as it is now. The Dispute Chamber acknowledges that this innovation project is part of the search for alternatives to address nighttime noise, during which limited personal data may be processed during the testing period, with the intention of ultimately minimizing this processing of personal data to an absolute minimum. In this context, the Dispute Chamber takes into account the intention to realize the processing of personal data after the pilot project 'on edge': "To enable real-time use, we will examine to what extent the classification model can be adjusted to make it smaller and more efficient, if possible to the point that it can be executed on the sensor device computing board itself."⁹³ The alternative proposed by the Inspection Service, which is based solely on measuring sound intensity, does not constitute a sufficiently effective alternative as it does not take into account the sound classes mentioned in paragraph 26 of this decision.

120. In summary, the Dispute Chamber concludes that the processing of personal data in the innovation project could be based on the public interest of Article 6.1.e of the GDPR as included in Article 135 §2 of the Municipalities Act. This applies both to the training of the AI model and to the real-time use of the models to activate suitable nudging. If the quality and duration of the raw audio files had been kept low, the use of the legal basis in Article 6.1.e GDPR would have been sufficient in itself to ensure the legality of the processing. The technical analysis by the Inspection Service indeed demonstrated that it is technically possible to reduce the duration and quality of the audio, so that sound is still captured, but no intelligible voices (intelligible voices that inevitably contain sensitive personal data within the meaning of Article 9.1 GDPR) are recorded. The Dispute Chamber also notes that it is not necessary to process intelligible conversations to train and use an AI model – which only needs to distinguish between the classes described under paragraph 26. Thus, a reduction in audio quality would likely have been compatible with achieving the goals of the pilot project.

121.

Since raw audio files were processed in the innovation project with such high quality that they can contain intelligible voice sounds, which inevitably capture conversations containing sensitive personal data within the meaning of Article 9.1 GDPR, and thus special categories of personal data are processed, and since the voice prints can be traced back to the raw audio files, a fundamental processing prohibition applies to this personal data under Article 9.1 GDPR, unless the processing is based on

⁹³ Appendix to document 38: Quotes: Quote A002153_nr3 Preventing Noise Pollution by Y_1, p. 9.
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a legal basis under Article 9.2 of the GDPR. After analysis, the Dispute Chamber concludes that in the context of this innovation project, only Article 9.2.g and 9.2.i of the GDPR could be considered for processing the raw audio files.

122. Regarding Article 9.2.g of the GDPR: based on this legal basis, the raw audio files could be processed on grounds of substantial public interest. The Dispute Chamber points out that, in order to validly invoke the exception to the processing prohibition of special categories of personal data contained in Article 9.2.g of the GDPR, the data controller must demonstrate that:

- (i) a reason of substantial public interest exists;
- (ii) a ground exists in Union law or national law for the contentious processing, ensuring proportionality with the pursued objective, respecting the essential content of the right to the protection of personal data, and implementing appropriate and specific measures to protect the fundamental rights and interests of the data subject; and
- (iii) the contentious processing is necessary in the context of the aforementioned reason of substantial public interest.

123. Regarding the first constitutive element of Article 9.2.g of the GDPR, namely the existence of a “substantial public interest,” the Inspection Service questions in its investigation report whether such an interest exists in this case. It points to the absence of nighttime noise from human sources in the respondent's own policy framework.

124. In this context, the Dispute Chamber refers to the European directive concerning the evaluation and management of environmental noise, which states in Recital 1: “In the context of the Community policy, a high level of protection of health and the environment should be achieved, and one of the objectives to be pursued is the protection against noise pollution.” Recital 7 of that same directive emphasizes the need to collect and compare data on noise pollution to achieve a higher level of environmental protection and health protection. Although the European directive cited here does not apply to noise pollution caused by human sources, the Dispute Chamber, by analogy with this directive, concludes that the specificity of the area of the innovation project, particularly a busy nightlife district where nighttime noise based on human voices can be a problem, indeed constitutes a substantial public interest for the individuals living in the area of the innovation project and thus for the city.

125. The second constitutive element concerns the existence of a legal basis in “Union law or national law, ensuring proportionality with the pursued objective, respecting the essential content of the right to the protection of personal data, and implementing appropriate and specific measures to protect the fundamental rights and interests of the data subject.”

126. The Dispute Chamber rules that the law referred to by the respondent as the basis for pursuing the public interest, namely Article 135 §2 of the Municipal Act, cannot be considered a law with sufficient qualitative criteria as established in the case law of the Court of Justice. The Court of Justice determined in the judgment *Privacy International* that the relevant legislation must contain clear and precise rules “on the scope and application of the relevant measure, so that those whose personal data are concerned have sufficient guarantees that those data are effectively protected against the risk of misuse.” The Court of Justice adds: “That regulation must be legally binding under national law and in particular indicate under which circumstances and conditions a measure providing for the processing of such data may be adopted, thus ensuring that the interference is limited to what is strictly necessary. (...) These considerations are particularly relevant when it comes to the protection of a special category of personal data, namely sensitive data.” (emphasis added by the Dispute Chamber).

127. The third constitutive element of Article 9.2.g of the GDPR concerns compliance with the necessity principle in the context of the innovation project. The Dispute Chamber has already ruled that processing personal data is necessary to pursue the public interest contained in Article 135 §2 of the Municipal Act. However, the respondent does not demonstrate anywhere that the inclusion of intelligible voices and conversations, which inevitably contain sensitive personal data within the meaning of Article 9.1 GDPR, is necessary to achieve this objective. Moreover, as mentioned above, the technical analysis by the Inspection Service showed that it is technically possible to reduce the quality and duration of the audio so that there is still sound, but no intelligible voices are recognized.

could be. 99. The Dispute Chamber also establishes that it is not necessary to process intelligible conversations to train and use an AI model – which only needs to distinguish between the classes described under paragraph 26. The Dispute Chamber rules that the intelligible recording of conversations, which are part of the raw audio files, is therefore not necessary to achieve the objective of the innovation project.

128. Since two of the three constitutive elements of the overriding general interest as included in Article 9.2.g of the GDPR do not apply to the processing of raw audio files in the innovation project, the Dispute Chamber rules that this processing of special categories of personal data cannot rely on the overriding general interest.

129. Based on Article 9.2.i of the GDPR, the raw audio files could possibly be processed on the basis of a general interest in the field of public health. The Dispute Chamber notes that the limitation of noise pollution is also driven by public health objectives.

130. This exception to the processing prohibition on special categories of personal data also requires a basis in Union law or national law that includes appropriate and specific measures to protect the rights and freedoms of the data subject. Just as with the analysis of the overriding general interest as referred to in Article 9.2.g of the GDPR, the Dispute Chamber rules that the legal basis in Article 135 §2 of the Municipalities Act does not contain safeguards and is therefore too broad to be used as a ground for exception for processing the raw audio files based on the general interest in the field of public health.

Conclusion

131. The Dispute Chamber rules that the respondent has violated the processing prohibition of Article 9.1 of the GDPR since it could not rely on a legal basis of Article 9.2 of the GDPR to process the special categories of personal data in the raw audio files and the voiceprints.

132. However, if the respondent had succeeded in reducing the recording duration and the audio quality of the raw audio files so that conversations could not be recorded intelligibly, then no special categories of personal data would be processed.

133. In that case, the processing of personal data in the innovation project could be based on the general interest (Art. 6.1.e GDPR) contained in Article 135 §2 of the Municipalities Act. In this analysis, the Dispute Chamber explicitly points out the limits of the innovation project, being in a limited zone where night noise of human origin is relevant, for a limited duration, and with the intention of minimizing any processing of personal data after the pilot project by realizing this processing 'on edge'. The Dispute Chamber also notes that it would be clearer for the data subjects if the essential elements for the processing of personal data under this article were defined, as provided for in the GDPR.

II.6. Right to object

134. In the exchange between the complainant and the respondent on May 11, 2022, the former stated: "I like to walk around as a free citizen talking on the street without this being recorded." 100 Based on this exchange, the Dispute Chamber infers that the complainant may have objected to the processing of his personal data in the innovation project. However, the conclusions do not indicate anywhere that the complainant effectively objected to the processing, nor has the complainant reverted to this right of objection, which is why the Dispute Chamber will not address the possible infringement of the right to object in this decision.

II.7. Transparency

135. The Inspection Service concluded that the respondent communicated both incompletely and misleadingly about the processing of personal data within the innovation project. The information boards in the public space did not meet the accessibility requirements according to the Inspection Service.

136. The respondent did not take a position regarding the infringements of the transparency obligations.

Assessment of the Dispute Chamber

137. The Dispute Chamber, together with the Inspection Service, establishes the following infringements regarding the transparency obligations of the respondent:

- An infringement of Article 13.1.c) of the GDPR due to the failure to mention the legal basis in the

privacy statement.

100 Annex 3 of document 2, mediation, p. 1.

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A violation of Article 13.1.e) of the GDPR due to the failure to mention the three subprocessors in the innovation project as recipients of personal data.

•

A violation of Article 13.1.f) of the GDPR due to the failure to provide necessary information regarding the transfer of personal data to a subprocessor located in a third country outside the EEA.

•

A violation of Article 13.2.b) of the GDPR due to the absence in the privacy statement of certain rights of data subjects, specifically the right to restriction of processing under Article 18 of the GDPR, the right to data portability under Article 20 of the GDPR, and the right to object under Article 21 of the GDPR.

138. Regarding the retention periods, the Dispute Chamber, together with the Inspection Service, establishes a violation of Article 13.2.a) of the GDPR as these are limited only to "the duration of the project." In this context, the Dispute Chamber also points to the processing agreement between the respondent and the processor, which in Article 3.3 stipulates that all personal data shall be transferred to the respondent upon termination of the processing agreement and destroyed by the processor, "unless storage of the Personal Data is required by Union law or Member State law."¹⁰¹ The Dispute Chamber finds that the retention periods of the personal data or the criteria for determining that period, in other words, the relevant Union law or Member State law grounds, are not included in the privacy statement. Furthermore, the Dispute Chamber also questions the effectiveness of Article 3.3 of the processing agreement, as the processor was of the opinion that the raw audio files and voiceprints did not involve personal data. Also, the GEB does not provide clarity on this matter, as only measures were taken regarding the raw data on the sound sensor. Nowhere is there any mention of the processing, let alone the deletion or retention periods of the voiceprints.

Conclusion

139. In light of the above, the Dispute Chamber establishes a violation of the transparency principle of Article 5.1.a) in conjunction with Article 12.1, Article 13.1, and Article 13.2 of the GDPR.

101 Annex to document 38, 007 –

2022_BBDMV_00009_Processing_Agreement_City_Of_Antwerp_and_[processor], p. 6.

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II.8. Data Protection Impact Assessment

140. The GDPR does not formally define the concept of DPIA, but Article 35.7 of the GDPR specifies the minimum content of a DPIA. Recital 84 of the GDPR clarifies the meaning and role of the DPIA: "In order to enhance compliance with this Regulation where processing is likely to result in high risks to the rights and freedoms of natural persons, the controller or the processor should be responsible for carrying out a DPIA to assess in particular the origin, nature, specific characteristics, and severity of that risk. [...]"

141. The Article 29 Data Protection Working Party, the predecessor of the EDPB, describes the DPIA as: "a process intended to describe the processing of personal data, assess its necessity and proportionality, and help manage the associated risks to the rights and freedoms of natural persons by assessing those risks and determining measures to address them."¹⁰²

142. The Inspection Service has established that the respondent regarded a DPIA as a formality, resulting in the conducted DPIA not meeting the substantive requirements of Article 35.7 of the GDPR.

143. The respondent points to the incorrect interpretation by the Inspection Service of the term 'formality' and refers to the definition of the word in the Van Dale:

A formality was by no means understood here as a triviality, something of minor importance, ... but rather as also indicated in the Van Dale dictionary – as a (legally) prescribed rule, an action that must occur according to regulations (and thus: without any connotation regarding the importance that should

or should not be attached to this action).”¹⁰³

Assessment of the Dispute Chamber

144. Based on the inspection report¹⁰⁴, the Dispute Chamber finds that a DPIA for the processing of the raw audio data and the voiceprints was mandatory under Articles 35.3.b and 35.3.c of the GDPR. Article 35.4 of the GDPR allows the DPA to also mandate a DPIA for types of processing that it considers to pose a high risk. The DPA published such a list in 2019. In this list from the DPA, for the

102 Article 29 Data Protection Working Party, Guidelines on Data Protection Impact Assessments and determining whether a processing “is likely to result in a high risk” within the meaning of Regulation 2016/679, October 4, 2017, p. 4.

103 Document 124, respondent's reply conclusion, paragraph 59.

104 Document 83, Inspection Report, p. 195-206.

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Processing in the innovation project also requires a DPIA according to point 6) and point 8).¹⁰⁵

In this context, the Dispute Chamber rules that a DPIA is also necessary for pilot projects, although the risk analysis and the necessary technical and organizational measures can take into account the limits of the pilot project.

145. The guideline previously mentioned from the Article 29 Data Protection Working Party indicates when a DPIA must be conducted:

“The Data Protection Impact Assessment should be started as early as possible in the design of the processing, even if some processing operations are not yet known. Updating the Data Protection Impact Assessment throughout the entire project lifecycle ensures that data protection and privacy are taken into account and encourages the creation of solutions that promote compliance. [...]

Conducting a Data Protection Impact Assessment is a continuous process, not a one-time exercise. (emphasis in original text)”¹⁰⁶

146. The inspection report shows that the respondent had already been considering smart cities, the use of the city as a ‘living lab’, the deployment of artificial intelligence, and the external sharing or opening of collected data as early as 2017. The risks associated with data protection were also recognized at that time: “For example, Internet of Things data captured in the public domain often also contains personal data.”¹⁰⁷

147. In the respondent's proposal of 2019 to the second stakeholder in the context of acquiring subsidies for its innovation project, similar findings regarding data protection risks were made: “With sensors and cameras, we capture various data such as sound and movement. We combine this data with other environmental data to write an algorithm that controls the actuators and thus also directs behavior.”¹⁰⁸ The Inspection Service also cites a document from the respondent dated 2021, which states: “From our

105 Decision of the General Secretariat of the GBA no. 01/2019 of January 16, 2019, paragraph 6.

Point 6: “when there is large-scale processing of data generated by devices with sensors that transmit data via the internet or through another medium, and this processing is intended to analyze or predict the economic situation, health, personal preferences or interests, reliability or behavior, location or movements of natural persons;

Point 8: When there is large-scale processing of personal data where the behavior of natural persons is systematically observed, collected, recorded, or influenced through automated processing, including for advertising purposes.

106 Article 29 Data Protection Working Party, Guidelines on Data Protection Impact Assessments and determining whether processing “is likely to result in a high risk” within the meaning of Regulation 2016/679, October 4, 2017, pp. 17-18.

107 Document 83, Investigation Report, p. 202.

108 Appendix to document 38, 004 – 20190923_Application form call 2019 City of Things 2019_FINAL, p. 4.

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It is essential that we collaborate with other partners and authorities and can share sensitive (personal) data in a smooth and correct manner.”¹⁰⁹ On February 25, 2022, the DPO of the city advised that a

DPIA must be conducted “given the potential risks of the project.”¹¹⁰ The processor stated in the BAFO: “We will initiate a DPIA immediately after the awarding of the project.”¹¹¹

148. The Dispute Chamber finds that the respondent, contrary to the advice of the applicable and already existing guideline from 2019, took no initiative to start a DPIA between 2017 and February 2022, while it was already clear during that entire time that there were risks associated with the project as it was initiated. Furthermore, it appears from the BAFO of the processor that the latter was tasked with initiating the DPIA after the awarding of the contract.¹¹² On March 23, 2022, the respondent awards the innovation project to the processor.¹¹³ On April 12, 2022, being 20 days after the awarding, the DPO of the city gives a positive opinion on the DPIA for the innovation project.¹¹⁴ 149. Regarding the minimum elements that a DPIA must contain according to Article 35.7 of the GDPR, the Dispute Chamber, together with the Inspection Service, finds that:

- a. the description of the processing was too vague and incomplete, resulting in an assessment and evaluation of the risks associated with the processing being based on incomplete information,
- b. the inadequate delineation of the purposes of the innovation project hindered a correct analysis of the necessity and proportionality of the processing of the raw audio files and voice prints, and the very brief assessment of necessity and proportionality in the DPIA could not remedy this,
- c. the city could not present a method regarding risk assessment, and no risk analysis worthy of the name was demonstrably conducted on the innovation project, which, however, contained very significant risks for the fundamental rights and freedoms of residents and passersby,

109 Document 83, Report of the Investigation, p. 203.

110 Appendix to document 38: 004 – 20220225_advice_DPO_Nuisance_student_neighborhood, p. 2.

111 Appendix to document 38: Offers: Offer A002153_nr3 Preventing noise nuisance by Y_1, question 7, p. 33.

112 Ibid.

113 Appendix to document 42, 07-A002153_Awarding_report_vFAST_Preventing_noise_nuisance through innovation.

114 Appendix to document 38, 004 – 20220412 – Decision_2022_BDPO_00005 DPIA Noise nuisance Student neighborhood – Advice DPO – Approval.

115 Document 83, Report of the Investigation, p. 206-251.

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d. a correct assessment of the applicable technical and organizational measures was not possible.

150. The correct definition of the term ‘formality’ from the Van Dale dictionary, which the respondent refers to in his conclusion, does not detract from these findings. The Dispute Chamber notes that the respondent does not provide any other arguments to refute these findings.

Conclusion

151. The Dispute Chamber rules that the respondent has violated Article 35.7 of the GDPR due to serious shortcomings regarding the systematic description of the processing activities, the assessment of the necessity and proportionality of the processing, the assessment of the risks to the rights and freedoms of the data subjects, and the intended measures to address these risks.

152. The Dispute Chamber notes that with a correct and serious implementation of a DPIA, the respondent would have had the opportunity to assess the risks of the processing, after which many of the violations described in this decision could have been avoided. However, the fact that the processing was carried out within the framework of a relatively short-term pilot project can be taken into account in the assessment of the risks and the determination of the necessary technical and organizational measures.

II.9. Data Protection by Design and by Default

153. Regarding data protection by design and by default (hereinafter ‘DPbDD’)¹¹⁶ as defined in Article 25 of the GDPR, the EDPB guidelines state: “The core of the provision is to ensure appropriate and effective data protection, both by design and by default, which means that data controllers must be able to demonstrate that they have appropriate measures and safeguards in place to ensure that the data protection principles and the rights and freedoms of data subjects are effectively upheld.”¹¹⁷

The Inspection Service identified several violations against the DPbDD, both concerning the raw audio files and the voice prints. The inspection report referred

116 DPbDD stands for data protection by design and default, the commonly used English abbreviation for gegevensbescherming door ontwerp en door standaardinstellingen.

117 EDPB, Guidelines 4/2019 on Article 25: Data Protection by Design and by Default, version 2.0, adopted on October 20, 2020, paragraph 2.

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specifically regarding the recognizability of the individuals involved and the content of the conversations in the raw audio file, the duration of the fragments in the raw audio files, and the continuous recording 24/7 in public spaces. The Inspection Service found that the respondent had not conducted research into possible anonymization techniques to avoid the MEL spectrograms with speech leading to biometric data. The technical analysis by the Inspection Service specifically pointed out the technical possibility of lowering the quality of the audio recording so that sounds could still be recognized, but voices could no longer be identified. However, this possibility was never investigated by the respondent or the processor.

154. The respondent refers to its communication with the processor to implement several organizational and technical measures to secure the processing of personal data. To avoid the recognizability of the conversations, the respondent points out that the content of the conversations was not relevant, that the duration of the raw audio files was as long as minimally necessary to train the algorithm, that the raw audio files were encrypted and only retained for eight hours, and that only fragments linked to events were forwarded and stored longer for analysis and training of the algorithm. The respondent also argues that Article 25 of the GDPR states that account must be taken of "the purpose of the processing (i.e., it has been explained multiple times above that it was not (adequately) possible to train the algorithm accurately to distinguish between different types of sounds without processing raw audio files)."118

Assessment of the Dispute Resolution Chamber

155. The Dispute Resolution Chamber takes into account in its assessment that the innovation project was a pilot project aimed at, in a subsequent phase, as stated by the processor, minimizing the processing of personal data by processing it 'on edge.'¹¹⁹ It will therefore limit its analysis of DPbDD within this context, noting that the respondent, should the innovation project be converted into a policy, will also need to conduct an adjusted analysis of DPbDD.

156. The Dispute Resolution Chamber, together with the Inspection Service, finds that the respondent, against the advice of its DPO, did not differentiate between audio fragments that contained intelligible human speech and audio fragments without such human speech.

118 Document 124, Conclusion of the respondent's reply, paragraph 48.

119 See footnote 92.

120 Document 83, Report of the Investigation, p. 161.

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Nor was the duration and quality of the recordings reduced to such an extent that intelligible voices or conversations could not be recorded.

157. A measure proposed by the processor to prevent the potential eavesdropping of a conversation involved making it technically impossible for the processor's employees who had to listen to the fragments to label them by editing the consecutive fragments of each ten seconds in which human speech occurred. This measure was not implemented. This risk of eavesdropping could have been further limited by working with shorter fragments. This measure was also not implemented. The respondent's argument that the content of the conversations was not relevant does not detract from this finding but reinforces the argument that recording the content of the conversations was therefore unnecessary and should have been avoided. In this context, and as already mentioned, the Dispute Resolution Chamber also finds that it has not been demonstrated that it is necessary to process intelligible conversations to train and use an AI model – which only needs to distinguish between the classes described in paragraph 26. The respondent's argument that the duration of a ten-second fragment was the minimum required to train the algorithm was contradicted by the processor in its

BAFO. It had indeed advised that fragments of two seconds were sufficient to train the algorithm.¹²¹ Furthermore, the arguments regarding the security of these fragments and the limitation of the retention period do not detract from the finding that it could initially have been chosen to limit the recording to fragments of two seconds and, moreover, to make it impossible to listen to consecutive fragments.

158. The respondent's argument that this method for measuring sound intensity was considered a privacy-friendly method is also not persuasive. There are other methods to measure sound intensity that do not rely on audio recordings, such as using a decibel meter. In that same context, the technical analysis by the Inspection Service¹²² showed that the state of the art allows for limiting the duration and quality of the recorded audio so that sounds could be recognized without the voice or conversations being processed intelligibly. Nowhere can it be inferred that the respondent or the processor conducted any research into this solution or even considered this solution.

159. The Dispute Resolution Chamber, together with the Inspection Service, finds that the respondent, against the advice of its DPO, also recorded sounds outside the period during which nighttime noise occurred.

¹²¹ Ibid, p. 164.

¹²² Document 55, Analysis of the response from [processor], p. 24.

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relevant is.¹²³ A limitation on the processing during these hours could have significantly reduced the amount of processed data and the number of data subjects involved, and thus also the risks for these data subjects. The respondent, on the other hand, chose to record sounds 24/7 and allowed further processing of the raw audio files from 7 PM to 7 AM, while the hours for night noise are established from 10 PM to 7 AM.¹²⁴ The respondent does not provide a sufficient explanation as to why the sensors had to record sounds continuously and why the legal timeframe for night noise was extended.

160. In finding 12 of the inspection report, the Inspection Service pointed out the different phases of the project and the alignment of the processing of personal data in public spaces with these phases. It has not been proven to the Dispute Chamber that the recordings in public spaces were not necessary to train the algorithm and thus contribute to the reduction of night noise, especially since this was clearly a pilot project. The Dispute Chamber will therefore not further address this finding.

Conclusion

161. The Dispute Chamber rules that the respondent has violated Article 25 of the GDPR by failing to avoid or limit the processing of personal data, biometric data, and data of special categories of personal data in the pilot project, either by design or by default settings, while it has been sufficiently demonstrated to the Dispute Chamber that, taking into account the state of technology, the context, and the purpose of the processing, this was possible or at least it was appropriate to explore the possibility and potentially demonstrate that it was not possible.

II.10. Duty of Care Regarding the Processor

162. Article 28.1 and Recital 81 of the GDPR require the data controller to only choose processors that can provide sufficient guarantees in terms of data protection. The EDPB has specified the responsibility regarding the choice of processor as follows in its guidelines concerning data controllers and processors:

“94. [...] The data controller is therefore responsible for assessing the adequacy of the guarantees provided by the processor and must be able to demonstrate that it has seriously considered all elements mentioned in the GDPR.

97. The data controller must take into account the following elements to assess whether the guarantees are adequate: the expertise of the processor (e.g., technical expertise in the area of security measures and data breaches); the reliability of the processor; the resources of the processor [...]”.¹²⁵

163. The Inspection Service found that the respondent, despite various warning signals, did not request additional explanations or evidence from the processor in order to assess its GDPR expertise.

164. The complainant believes that the respondent could have done more than just ask a few critical questions to the processor, as the respondent itself states.

165. The processor emphasizes that it indeed possesses the “required (technical) expertise and resources”¹²⁶ to successfully complete similar projects to the innovation project.

166. The respondent argues that sufficient attention was given to GDPR compliance during the awarding procedure, that various critical questions were asked, and that these questions were explicitly answered by the processor in an annex to the BAFO. During the hearing, the respondent stated that, given the regulations regarding the public sector and procurement, it could not respond further when it found that the claims of the processor were not correct during the execution of the innovation project.

II.10.1. Assessment by the Dispute Chamber

167. In order to assess the duty of care of the respondent towards the processor, the Dispute Chamber will rely on the three criteria from Recital 81 of the GDPR, as explained by the EDPB in its guidelines¹²⁷. For each criterion, the Dispute Chamber will assess whether the respondent can demonstrate that the processor has provided sufficient guarantees to comply with the duty of care. This ‘demonstration’ is, according to the EDPB¹²⁸, an ‘exchange of relevant documentation’.

¹²⁵ EDPB, Guidelines 07/2020 on the concepts of “data controller” and “processor” in the GDPR Version 2.0 Adopted on July 7, 2021.

¹²⁶ Conclusion of the processor, paragraph 8.

¹²⁷ EDPB, Guidelines 07/2020 on the concepts of “data controller” and “processor” in the GDPR Version 2.0 Adopted on July 7, 2021, paragraph 97.

¹²⁸ Ibid, paragraph 95.

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The Dispute Chamber will therefore specifically examine which guarantees the respondent has documentation for that can demonstrate his ‘vigilance’.

168. Criterion 1: ‘the expertise of the processor’:

Both the respondent and the processor refer to the reference projects that have already been carried out by the processor and that are similar to the innovation project. However, in its guidelines, the EDPB points out through an example that not only (technical) expertise in the subject matter must be demonstrated, but especially expertise in the area of data protection: “e.g., technical expertise in the field of security measures and data breaches”¹²⁹. This expertise could, for example, be demonstrated with an audit or a data protection certificate, which was not the case for this processor. Of the mentioned reference projects to which the processor and the respondent refer, three of the five reference projects date from before the entry into force of the GDPR in 2016, and a fourth project started for the implementation of the GDPR in 2018. Regarding the project where the GDPR was fully applicable, the respondent could not present any document regarding the data protection policy.

Furthermore, the processor indicated in the BAFO that “[...] no previous DPIAs or DTIA were conducted”¹³⁰ when the respondent inquired about previous DPIAs that could be built upon.

The inspection report points to various indicators on the basis of which the respondent should have questioned the expertise of the processor in the field of data protection. These include the initial proposal to work with raw audio files of 30 seconds, the adjustment of the GDPR commitments of the processor in the subsequent offers, the limited demonstration of GDPR compliance in the offer, and the (incorrect) assertion that voice prints are anonymized. With the exception of the adjustment of the GDPR commitments of the processor, these indicators were also noticed by the respondent or his DPO.

The complainant pointed out in this regard the possibility of using an independent expert or existing questionnaires to verify the expertise of the processor. The respondent cannot demonstrate that it consulted an independent expert, neither internally within its organization nor externally. The respondent does refer to the questions that were asked and answered in the BAFO. However, these questions hardly address the technical aspects of the processing, which means that the respondent could not assess in any way what the technical expertise of the processor in the field of data protection was.

Finally, the DPO can play a significant role in such in-depth assessments. However, the Dispute Chamber notes that the DPO was only minimally involved in the project and that her comments were

hardly followed up. The first demonstrable intervention of the DPO dates from November 22, 2021¹³¹. In this intervention, various comments and potential issues regarding data protection were already formulated. In the DPO's advice dated February 25, 2022, she states that she has not received a response to her comments from November 22, 2021.¹³² The meeting report regarding this advice also states: "Both were historically aware of the project and have also been involved in it. However, in December last year, apparently [...] a number of questions/comments were [sent] and nothing has been heard since. They are now surprised to see that a tender has gone out and is ready to be awarded. [DPO] and [x] have briefly reviewed the document, but not in detail given the many pages and the very short time they were given."¹³³ (emphasis by Dispute Chamber) The Dispute Chamber finds that the DPO was not sufficiently involved to assess the expertise of the processor in the field of data protection.

The respondent pointed out in its conclusion another project in which the processor was involved and stated that the processor "already developed a GDPR procedure in collaboration with IT law specialists from KULeuven."¹³⁴ The respondent also referred to the processor's presentation, which highlighted the focus on the security of personal data. The Dispute Chamber reiterates that integrity and confidentiality are only one of the six principles of data protection and that expertise is required regarding all principles of data protection.

The respondent also pointed out the reality that it was not possible to have every candidate undergo an external audit before awarding the project. The Dispute Chamber agrees with the respondent in this regard and states that a certificate from an external audit is not a necessary requirement. Such certificates are mentioned as examples, alongside other possibilities. The fact that the processor does not possess such a certificate is not an indication of value; only if it could present a certificate would this have value in the assessment.

131 Appendix to document 38: 004 – 20211115_advice_DPO_Buurtgebruik.

132 Appendix to document 38: 004 – 20220225_advice_DPO_Overlast_studentenbuurt, p. 1.

133 Appendix to document 38: 2022-02-25 DPO input studentenbuurt, p. 1.

134 Document 124, respondent's reply conclusion, paragraph 52.

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The Dispute Chamber rules that the respondent cannot demonstrate the expertise of the processor, primarily because it has not sufficiently questioned or tested the expertise of the processor.

169. Criterion 2: 'reliability of the processor':

No arguments were presented regarding the reliability of the processor, other than the five reference projects that were submitted to the respondent. The Dispute Chamber will therefore not elaborate further on this criterion.

170. Criterion 3: 'the resources of the processor':

In the discussion between the Inspection Service and the processor, the latter stated as a reason for labeling the CEO as DPO in the GEB and other documents that the CEO was the only permanent employee of the processor at that time: "Since I was the only one working for [processor] as a main activity at the time the project with the city started and was responsible for the daily management (there were no employees) [...]"¹³⁵ The same person also appeared in the GEB as 'business owner', as 'DPO', and as 'information security consultant'.¹³⁶ Nowhere in the documentation is it noted that the respondent questioned the available resources of the processor.

In this regard, the processor also pointed to the involvement of two DPOs in the project with the respondent and stated: "For this reason, I assumed that the necessary expertise was present regarding this project."¹³⁷

The Dispute Chamber therefore concludes that the respondent did not verify whether the processor had sufficient resources to properly manage such a complex and 'privacy-invasive' innovation project in terms of data protection.

Conclusion

171.

The Dispute Chamber rules that the respondent has violated Article 28.1 of the GDPR since it cannot demonstrate that it has verified the expertise of the processor and the resources of the processor to

ensure that the processing met the requirements of the GDPR and that the protection of the rights of the data subjects was guaranteed.

135 Document 83, Report of the Investigation, p. 181.

136 Ibid, p. 180-181.

137 Ibid, p. 182.

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II.11. Transfer to third countries outside the EEA

172. When personal data is transferred to countries outside the European Economic Area (hereinafter 'EEA'), this constitutes a transfer of personal data. For the transfer of personal data to countries outside the EEA, the GDPR stipulates that this is only permissible if the level of protection provided by the GDPR is not undermined. This is the case if the country outside the EEA has an adequate level of data protection or provides additional safeguards for the transfer of data. If the European Commission has not made an adequacy decision, then appropriate safeguards must be established in another way to provide a sufficiently high level of protection.

173. The Inspection Service finds that the processing did not comply with Chapter V of the GDPR since no risk assessment was conducted, upon which any appropriate safeguards could be based, while biometric personal data (voiceprints) were unsecured and available in the Google cloud.

174. The respondent does not take a position regarding a possible violation of Chapter V of the GDPR. Assessment of the Dispute Chamber

175. In the context of assessing the transfer of personal data outside the EEA, specifically to the United States, the Dispute Chamber refers to Recommendations 01/2020 of the EDPB. To assist data controllers in the task of assessing the data protection of third countries and, where necessary, establishing appropriate additional measures, the EDPB has provided a step-by-step plan.¹³⁸

176. Step 1: awareness of the transfers: first and foremost, it is important for the respondent to be aware of the personal data being transferred. In the processing agreement with the processor, it was stated in Annex 3 that no sub-processors were provided¹³⁹. Based on this agreement, it could be argued that the respondent was not aware of the use of a sub-processor with the parent company in the United States.

138 EDPB Recommendations 01/2020 regarding supplementary measures to transfer instruments to ensure compliance with the level of protection of personal data in the Union dated June 18, 2021,

139 Annex to document 38, 007 –

2022_BBDMV_00009_Processing_Agreement_City_Antwerp_and_[processor], Annex 3.

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However, in the BAFO, which precedes the processing agreement, the processor states that it works with 3 subprocessors.¹⁴⁰ In Annex 2 of the BAFO, the processor indicates that the data centers are located in the EEA.¹⁴¹

In the questions and comments from the respondent regarding the processor's first offer, it is clear that the respondent was already aware of the issues related to the use of subprocessors with a parent company in the United States. The respondent stated: "It remains the case that both [subprocessor] and [second subprocessor] have US-based parent companies, and therefore there is a risk of transfer to the US government under the US FISA legislation. To properly assess the risk to the data protection of the data subjects, a DTIA is a designated instrument. [...] Therefore, additional measures may be necessary [...]"¹⁴²

The Dispute Chamber rules that the respondent was aware of the potential transfer of personal data to third countries outside the EEA at the time of discussing the processor's first offer. Moreover, the respondent itself pointed out the necessity of conducting a DTIA so that additional measures for the protection of this personal data could be identified and implemented.

177. Step 2: Determination of the relevant transfer instrument: in this step, the respondent should determine which transfer instrument from Chapter V of the GDPR it would use. The Dispute Chamber reminds that the transfer of personal data to a third country, in the absence of an adequacy decision from the European Commission pursuant to Article 45 of the GDPR, is only possible if the data

controller or the processor has provided appropriate safeguards, and provided that enforceable rights and effective legal remedies are available for the data subjects (Article 46 of the GDPR). In the absence of a decision declaring the level of protection adequate in accordance with Article 45.3 of the GDPR, or of appropriate safeguards in accordance with Article 46 of the GDPR, a transfer or a category of transfers of personal data to a third country in specific circumstances may only take place under one of the conditions of Article 49 of the GDPR ("Derogations for data protection").

The Dispute Chamber, together with the Inspection Service, establishes that at the time of processing personal data in the innovation project, the adequacy decision of the Commission for transfers to the United States had been annulled by the Court of Justice.

140 Annex to document 38: Offers: Offer A002153_nr3 Preventing Noise Pollution by Y_1, p. 4.

141 Annex to document 38: Offers: Offer A002153_nr3 Preventing Noise Pollution by Y_1, Appendix 2: comments & questions DPO, comment 12.

142 Document 83, Report of the Investigation, p. 186.

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The Dispute Chamber also establishes, together with the Inspection Service, that the respondent did not assess or implement an appropriate transfer instrument. On the contrary, the respondent did not further inquire, address, or assess the issue in the BAFO, nor in the GEB, resulting in no appropriate measures being taken. This has led to a situation where the biometric voiceprints were not processed in an encrypted manner in the Google cloud, as established in the technical analysis of the Inspection Service¹⁴³.

Conclusion

178. The Dispute Chamber rules that the respondent has violated Article 44 of the GDPR by failing to make an appropriate assessment and take appropriate measures regarding the transfer of the processed data outside the EEA, although the respondent was aware of these transfers and the risks that such transfers entailed.

III. Corrective Measures and Sanctions

179. According to the wording of Article 100.1 of the WOG, the Dispute Chamber has the authority to:

- 1° dismiss a complaint;
- 2° order the discontinuation of prosecution;
- 3° order a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the data subject be informed of the security issue;
- 8° order that the processing be temporarily or permanently frozen, limited, or prohibited;
- 9° order that the processing be brought into compliance;
- 10° order the rectification, limitation, or deletion of data and notification thereof to the recipients of the data;
- 11° order the withdrawal of the recognition of certification bodies;

143 Document 83, Report of the Investigation, p. 193.

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- 12° to impose fines;
- 13° to impose administrative monetary penalties;
- 14° to order the suspension of cross-border data flows to another State or an international institution;
- 15° to transfer the file to the Public Prosecutor's Office in Brussels, which will inform her of the outcome of the file;
- 16° to decide on a case-by-case basis to publish her decisions on the website of the Data Protection Authority.

180. It is up to the Dispute Chamber to decide on the most appropriate sanction in light of the violations of Article 9.1; 5.1.a in conjunction with 12.1, 13.1 and 13.2; 35.7; 25; 28.1 and 44 of the GDPR and all circumstances of the case.

181. The Dispute Chamber is sensitive to the fact that the respondent had at least taken the formal steps expected of her and that she had cooperated loyally with the investigation, as indicated by the Inspection Service in its report. The Dispute Chamber is also sensitive to the fact that this was an innovation project aimed at finding new technological means to address known issues such as nighttime noise, with a minimal processing of personal data as a long-term goal.

182. However, the Dispute Chamber also takes into account that

- the respondent deliberately presented the processing of personal data in the innovation project and the potential risks thereof to the rights and freedoms of the data subjects vaguely and in some cases even incorrectly;
- the respondent, despite the formal but late implementation of a GEB, had not conducted a thorough risk analysis and implemented appropriate technical and operational measures, which could have addressed various identified violations of the GDPR before the processing began;
- the respondent was not unaware of certain risks to the rights and freedoms of data subjects and violations of the GDPR, as her DPO had made several pertinent comments in this regard;
- the respondent herself had noted at the beginning of the awarding process that there were possible violations of Chapter V of the GDPR and the potential risks associated with this, without taking this further into account, resulting in the practical processing of biometric data unencrypted on the Google cloud.

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III.1. Corrective measures

183. In these circumstances and due to the unlawful processing thereof, the Dispute Chamber orders the respondent, based on Article 100.1.10° of the WOG, to delete all raw audio files containing voice recordings and all voice prints and to inform the recipients of this personal data within a period of 30 days from the notification of this decision.

III.2. Sanctions

184. In these circumstances and due to the established violations of Article 9.1; 5.1.a in conjunction with 12.1, 13.1 and 13.2; 35.7; 25; 28.1 and 44 of the GDPR, the Dispute Chamber decides to issue a reprimand against the respondent based on Article 100.1.5°.

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the Market Court in accordance with Article 1034quinquies of the Ger.W.145, or via the e-Deposit IT system of Justice (Article 32ter of the Ger.W.).

(get). Hielke HIJMANS

Chairman of the Dispute Chamber

4° the subject and a brief summary of the grounds for the application;

5° the judge before whom the application is filed;

6° the signature of the applicant or their lawyer.

145 The application with its annex is sent by registered letter to the clerk of the court or filed at the registry in as many copies as there are parties involved.